Docusign Envelope ID: 18A75247-2DED-4FE1-B946-3328A5DAD6AC

Charles Russell Speechlys

DATED 15 July 2025

(1) **BANK OF ENGLAND**

and

(2) **ITF LICENSING (UK) LIMITED**

LEASE

of Third Floor South Wing, Records Office Roehampton

---

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PRESCRIBED CLAUSE

LR.1 Date of lease	15 July 2025
LR.2 Title number(s)	**LR2.1 Landlord's title number(s)** Title number(s) out of which this lease is granted. Leave blank if not registered 139884.
	LR2.2 Other title number 239100.
LR.3 Parties to this lease	**Landlord:** **BANK OF ENGLAND** (registered number RC000042) of Threadneedle Street London EC2R 8AH
	Tenant: **ITF LICENSING (UK) LIMITED** (registered number 02584446) whose registered office is at Bank Lane Roehampton London SW15 5XZ
	Other parties None
LR.4 Property	See definition of "Demised Premises" in the Lease The Property is let without the benefit of any existing easements other than those which are expressly referred to in in part 3 of Schedule 1 of this Lease
LR.5 Prescribed statements etc.	None
LR.6 Term for which the Property is leased	See definition of "Term" in the Lease
LR.7 Premium	None
LR.8 Prohibitions or restrictions on disposing of this lease	This lease contains a provision that prohibits or restricts dispositions

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LR.9 Rights of acquisition etc	**LR9.1 Tenant's contractual rights to renew this lease, to acquire the reversion or another lease of the Property, or to acquire an interest in other land** None
	LR9.2 Tenant's covenant to (or offer to) surrender this lease None
	LR9.3 Landlord's contractual rights to acquire this lease None
LR.10 Restrictive covenants given in this lease by the Landlord in respect of land other than the Property	None
LR.11 Easements	**LR11.1 Easements granted by this lease for the benefit of the Property** Schedule 1 Part 3
	LR11.2 Easements granted or reserved by this lease over the Property for the benefit of other property Schedule 1 Part 4
LR12 Estate rentcharge burdening the Property	None
LR.13 Application for standard form of restriction	None
LR.14 Declaration of trust where there is more than one person comprising the Tenant	None

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THIS LEASE is made on 15 July 2025

BETWEEN

(1) **BANK OF ENGLAND** (registered number RC000042) of Threadneedle Street London EC2R 8AH (the **Landlord**).

(2) **ITF LICENSING (UK) LIMITED** (company registration number 258446) whose registered office is at Bank Lane Roehampton London SW15 5XR (the **Tenant**).

THIS DEED WITNESSES as follows:

1 **INTERPRETATION AND DEFINITIONS**

1.1 In this Lease unless the context otherwise requires the following expressions shall have the following meanings:

1954 Act	the Landlord and Tenant Act 1954
Air-Conditioning	the air-conditioning system at the South Wing of the Building serving the Premises including all associated roof-top plant and conduits
Authorised Guarantee Agreement	an authorised guarantee agreement with respect to the performance by an assignee of the tenant's covenants in these Presents to be entered into by the Tenant pursuant to sub-paragraph 23.6 of Schedule 2 such agreement to be in accordance with the provisions of Section 16 of the Landlord and Tenant (Covenants) Act 1995 and subject thereto to be in such terms as the Landlord may reasonably require
Base Rate	the base rate of National Westminster Bank Plc from time to time ruling or if the same shall become incapable of determination such reasonable rate of interest as the Landlord may from time to time specify in substitution therefore
Basic Rent	from and including the Term Commencement Date the clear yearly rent of one hundred and two thousand six hundred and seventy five pounds (£102,675) (exclusive of VAT)

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Building	the building described in Part 1 of Schedule 1 (of which the Demised Premises form part) and any part thereof
Car Park	the part of the Landlord's Premises from time to time set aside for the parking of vehicles
Car Spaces	spaces in the Car Park
Certificate	the certificate signed by (at the discretion of the Landlord) the Landlord's Surveyor (being an associate or a fellow of The Royal Institution of Chartered Surveyors who is not an employee of the Landlord) or the Landlord's auditors or accountants (acting as expert and not as arbitrator) as soon after the end of the Relevant Financial Year as reasonably practicable and relating to such year which certificate shall contain a fair summary of the Landlord's Expenses for the Relevant Financial Year
Common Parts	those parts of the Landlord's Premises (other than Lettable Space) which are capable of being enjoyed by the tenants of the Landlord's Premises in common including the roof foundations and main structure of the Building, the Car Park the access and service yards sewers drains, pipes, watercourses cables and other conducting media (other than any exclusively serving any Lettable Space) plant equipment machinery and apparatus for the supply of any services to the Landlord's Premises or the tenants or occupiers thereof party and perimeter walls balconies and balcony areas entrance halls corridors toilet accommodation fire escapes lifts ramps and all other facilities provided or available for common or general use

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Demised Premises	the premises more particularly described in Part 2 of Schedule 1 and any part thereof together with all additions alterations and improvements thereto made during the Term and the fixtures and fittings therein (other than tenant's and trade fixtures and fittings)
EPC	an Energy Performance Certificate and Recommendation Report (as defined in the Energy Performance of Buildings (England and Wales) Regulations 2012)
Excluded Risks	any risk against which the Landlord does not insure (or in respect of which there is a partial exclusion to the extent that the partial exclusion applies) because it cannot reasonably be insured on satisfactory terms or at a reasonable premium or as the insurers or underwriters have refused to insure
Financial Year	the period ending on the last day of February in each year or such other date as the Landlord may in its discretion from time to time determine and Relevant Financial Year shall be construed accordingly
Insured Risks	the risks of fire storm tempest flood lightning explosion subsidence heave and in peacetime aircraft and articles dropped there from malicious damage impact plant and machinery cover overflowing of tanks bursting of pipes and such other risks as the Landlord shall from time to time insure (subject in all cases to any excesses exclusions and limitations imposed by the insurers or underwriters) except always such risks as cannot reasonably be insured on satisfactory terms or at a reasonable premium or as the insurers or underwriters have refused to insure

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Landlord	includes the estate owner for the time being of the reversion immediately expectant on the Termination of the Term
Landlord's Expenses	the costs outgoings and other expenditure paid or incurred by the Landlord during the Relevant Financial Year in connection with the provision of the Services or other costs incurred for the benefit of tenants or occupiers of the Landlord's Premises or for the preservation thereof including (without limitation) those under the heads of expenditure (including items added under the provisions for review thereof) set out in Part 1 of Schedule 5 and such reasonable part of all such expenses outgoings and expenditure which are of a periodically recurring nature (whether recurring by regular or irregular intervals) whenever paid or incurred during the Term including a sum or sums of money by way of reasonable provision for anticipated expenditure or for replacement or depreciation as the Landlord or the Landlord's Surveyor (as the case may be) may in its discretion allocate to the Relevant Financial Year as being fair and reasonable in the circumstances
Landlord's Premises	the land and premises shown edged red on Plan 1 and any part thereof
Landlord's Surveyor	any suitably qualified independent firm or person (but not the Surveyor) appointed by or acting for the Landlord to perform the function of a surveyor for any purpose under these Premises

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Lettable Area	in relation to all the Demised Premises the net internal area assessed in accordance with the Royal Institution of Chartered Surveyors' Code of Measuring Practice current at the date of this Lease (to be determined from time to time in case of dispute by the Landlord's Surveyor)
Lettable Space	any areas within the Landlord's Premises which are designed for and capable of exclusive beneficial occupation (excluding the Common Parts and Service Accommodation)
MEES Regulations	the Energy Efficiency (Private Rented Property) (England and Wales) Regulations 2015
MEES Works	the relevant energy efficiency improvement works recommended for the Demised Premises as set out in MEES Regulations 28
Permitted Use	use as offices within Class E of the Town & Country Planning (Use Classes) Order 2020
Plan 1 and Plan 2	the plans attached to this Lease and numbered accordingly

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Signed by:
Dominic Angiuleri
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PROJECT

THE GRANGE, BANK LANE, ROEHAMPTON SW15 5JT

TITLE

LAND REGISTRY PLAN

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SCALE 1:500

SCALE	SIZE	DRAWING
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DRAWN	CHECKED	DATE
DO	MG	MAR 2024

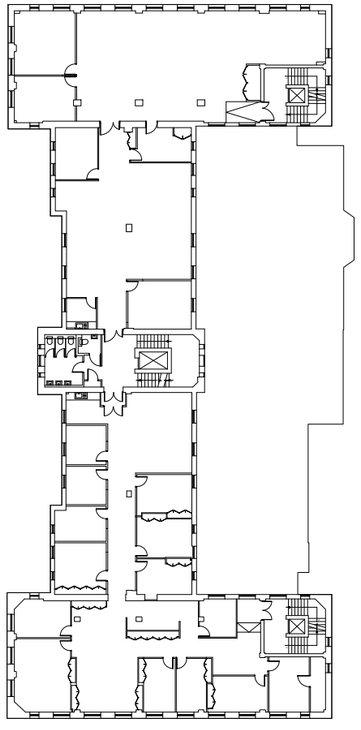
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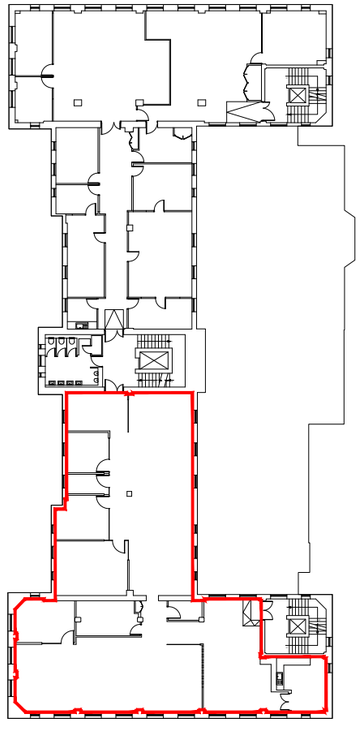


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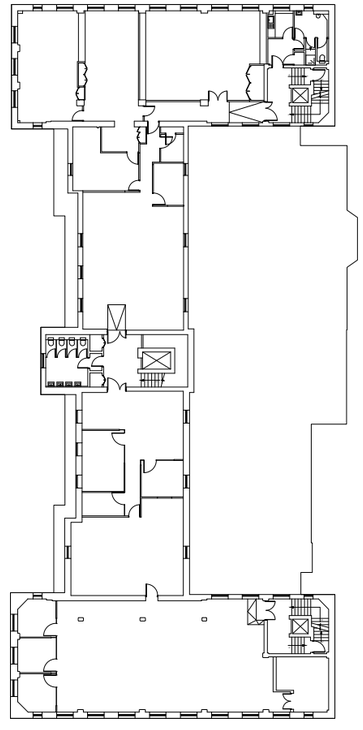
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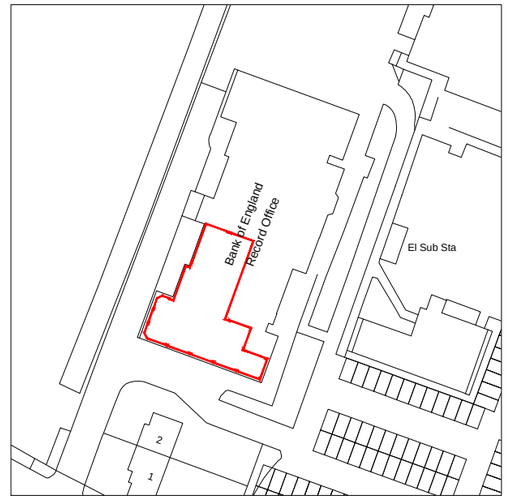
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THIRD FLOOR

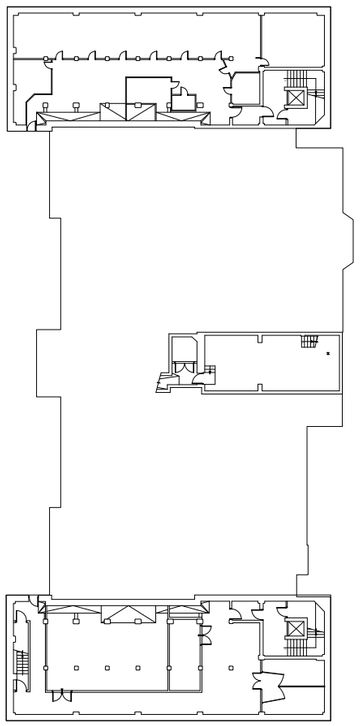


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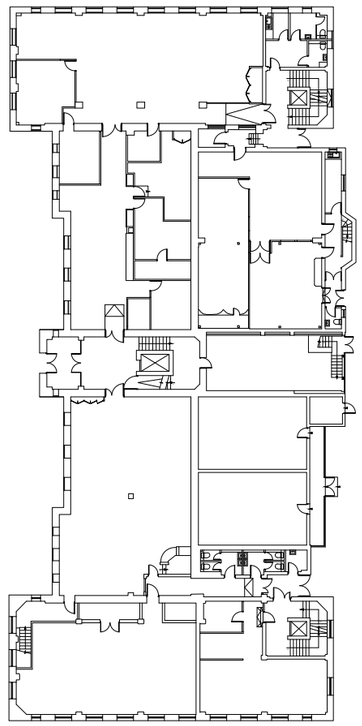


LOCATION PLAN
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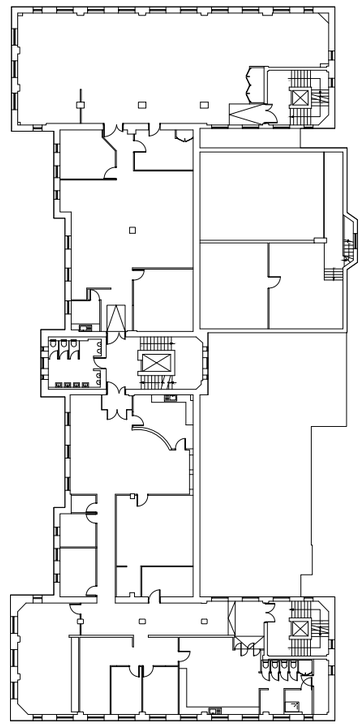
0m 10m 20m 30m 40m 50m 60m 70m 80m
SCALE 1:1250



BASEMENT



GROUND FLOOR



FIRST FLOOR

PROJECT

THE GRANGE, BANK LANE, ROEHAMPTON SW15 5JT

TITLE

LAND REGISTRY PLAN

0m 1m 2m 3m 4m 5m 6m 7m
SCALE 1:100

SCALE	SIZE	DRAWING
1:500	A3	67724
DRAWN	CHECKED	DATE
DO	MG	MAR 2024

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Planning Acts	the Town & Country Planning Act 1990 the Planning (Listed Buildings and Conservation Areas) Act 1990 the Planning (Hazardous Substances) Act 1990 the Planning (Consequential Provisions) Act 1990 the Planning and Compensation Act 1991 the Local Government Planning and Land Act 1980 the Local Government (Miscellaneous Provisions) Act 1982 the Housing and Planning Act 1986 and any act for the time being in force of a similar nature or any laws and regulations intended to control or regulate the construction demolition alteration or change of use of land or buildings or to preserve or protect the environment or the national heritage
these Presents	this Lease any licence or consent granted pursuant hereto and any variation hereof and any deed or instrument made supplemental hereto
Prescribed Rate	four per centum per annum above Base Rate compounded with rests on the Rent Days such rate to apply as well after as before any judgment
Regulations	the regulations set out in Schedule 6 and any variations or additions thereto from time to time notified in writing to the Tenant and reasonably made by or on behalf of the Landlord for the proper management care or security of the Landlord's Premises or the comfort safety or convenience of occupants thereof or persons resorting thereto
Rent Days	25 March 24 June 29 September and 25 December in each year and Relevant Rent Day shall be construed accordingly

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Service Accommodation	any offices workshops storerooms caretaker's lodges garaging for vehicles or other accommodation (whether on the Landlord's Premises or not) provided or used by or for the Landlord or its agents for the purpose of administering the Landlord's Premises or in connection with the carrying out or provision of any of the Services
Service Charge	the amounts payable by the Tenant pursuant to clause 2.2 and Part 2 of the Schedule 5
Service Charge Cap	from and including the Term Commencement Date to and including 28 February 2026 a cap on the annual Service Charge of forty one thousand and seventy pounds (£41,070) per annum (exclusive of VAT) and thereafter a cap on the annual Service Charge of forty three thousand one hundred and twenty three pounds and fifty pence (£43,123.50) per annum (exclusive of VAT)
Services	the services rendered works undertaken and obligations assumed by or on behalf of the Landlord pursuant to paragraph 3 of Schedule 3 and Schedule 5
Surveyor	an independent chartered surveyor of recognised standing experienced in the valuation of premises so far as practicable of similar character or comparable to the Demised Premises in the locality thereof or if there are no such premises locally then in the same region as the Demised Premises or nationally (as the case may require)
Tenant	includes its successors in title and assigns

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Tenant's Proportion	subject to paragraph 6, Part 4 of Schedule 5**,** the proportion which the Lettable Area of the Demised Premises bears to the Lettable Area of all the Lettable Space of the Building
Term	a term of years from and including the Term Commencement Date and expiring on and including 31 December 2026
Term Commencement Date	1 January 2025
Termination of the Term	the determination of the Term whether by effluxion of time re-entry or otherwise howsoever
Usual Business Hours	0800 to 1800 on Mondays to Fridays (excluding in each case bank statutory and public holidays)
Value Added Tax	Value Added Tax and any other tax replacing or supplementing the same from time to time

1.2 **Construction**

These Presents shall unless the context otherwise requires be construed on the basis that:

1.2.1 where the Tenant for the time being or any guarantor of these Presents comprises more than one person covenants and obligations assumed by the Tenant or any such guarantor (as the case may be) shall be construed as made by all such persons jointly and severally;

1.2.2 the Term shall be deemed to commence for all purposes on the date of commencement specified in clause 2;

1.2.3 references to any Act of Parliament order instrument regulation direction or plan shall be deemed also to refer to any statutory or other modification or re-enactment thereof from time to time in force and to include any requirement having the force of law in the United Kingdom and any subordinate legislation order instrument regulation direction or plan from time to time in force made or issued there under or deriving validity there from or from any enactment repealed thereby or under any such modification or re-enactment;

1.2.4 any covenant on the part of the Tenant not to do any act or thing shall include an obligation on the part of the Tenant not to permit or suffer such act or thing;

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1.2.5 words denoting one gender include the other genders and words denoting persons include firms and corporations and vice versa; and

1.2.6 clause and paragraph headings shall not affect the interpretation of these Presents.

2 DEMISE AND RENTS

In consideration of the rents hereby reserved and the covenants on the part of the Tenant and the conditions hereinafter contained the Landlord HEREBY DEMISES unto the Tenant the Demised Premises TOGETHER WITH (but to the exclusion of all others) the rights set out in Part 3 of Schedule 1 EXCEPTING AND RESERVING unto the Landlord and to all other persons from time to time entitled thereto the rights set out in Part 4 of Schedule 1 TO HOLD the same unto the Tenant SUBJECT TO all rights of light and air and all covenants easements rights and privileges (if any) affecting the Demised Premises for the Term YIELDING AND PAYING therefore unto the Landlord without deduction set-off or counterclaim (except such as the Tenant may be required by law to deduct notwithstanding any stipulation to the contrary):

2.1 **Basic Rent**: with effect from the Term Commencement Date yearly during the Term and so in proportion for any period less than a year the Basic Rent which shall be paid whether or not demanded in advance by equal quarterly payments on each of the Rent Days except the first payment which shall be made on the date of this Lease in respect of the period from and including the Term Commencement Date to (but excluding) the Rent Day next following the date of this Lease.

2.2 **Service Charge Rent**: by way of further rent on demand the Service Charge and other amounts payable pursuant to and at the times mentioned in Part 2 of Schedule 5.

2.3 **Insurance Rent**: by way of further rent on demand amounts payable pursuant to and at the times mentioned in Part 3 of Schedule 5.

2.4 **Further Rent**: by way of further rent all interest and other amounts payable under these Presents.

2.5 **Value Added Tax**: the Value Added Tax which is or may be chargeable (by reason of an election of the Landlord or otherwise) in respect of the rents reserved by clauses 2.1-2.4 of this Lease.

3 TENANT'S COVENANTS

The Tenant covenants with the Landlord in manner set out in Schedule 2.

4 LANDLORD'S COVENANTS

The Landlord covenants with the Tenant in manner set out in Schedule 3.

5 PROVISOS

It is agreed and declared in manner set out in Schedule 4 and Part 4 of Schedule 5.

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6 RECORD OF WHETHER A NEW TENANCY

It is hereby recorded that the tenancy created by this Lease is a new tenancy within the meaning of Section 1(3) of the Landlord and Tenant (Covenants) Act 1995.

7 CONTRACTS (RIGHTS OF THIRD PARTIES) ACT 1999

Unless expressly stated nothing in this lease shall create any rights in favour of any person pursuant to the Contracts (Rights of Third Parties) Act 1999.

8 EXCLUSION OF THE 1954 ACT

8.1 The Landlord and Tenant confirm that before the Lease was entered into:

8.1.1 the Landlord served on the Tenant a notice (the **Notice**) dated 25 April 2025 in relation to the tenancy created by this Lease in a form complying with Schedule 1 to the Regulatory Reform (Business Tenancies) (England and Wales) Order 2003 (the **Order**); and

8.1.2 a statutory declaration (the **Declaration**) dated 30 April 2025 complying with paragraph 8 of Schedule 2 to the Order was made by Chloe Atkins, whom the Tenant confirms was duly authorised by the Tenant to make the Declaration on its behalf.

8.2 The parties agree to exclude the provisions of sections 24 to 28 (inclusive) of the 1954 Act in relation to the tenancy created by this lease.

8.3 The Landlord and Tenant agree that there is no agreement for lease to which this Lease gives effect.

9 GOVERNING LAW AND JURISDICTION

9.1 This Lease and any dispute or claim arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) shall be governed by and construed in accordance with the law of England and Wales.

9.2 The parties to this Lease irrevocably agree that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Lease or its subject matter or formation (including non-contractual disputes or claims).

DULY DELIVERED AS A DEED

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SCHEDULE 1

Part 1
The Building

The Records Office Bank of England Sports Ground Bank Lane Roehampton Surrey shown edged and shaded blue on Plan 1.

Part 2
The Demised Premises

The third floor of the south wing of the Building shown edged red on Plan 2 which premises include:

1 the internal finishings linings coverings and the fixings thereof and plaster work tiles and other materials on the interior of the walls bounding the said premises the doors door furniture and door frames and any windows and the glass therein and internal window frames;

2 the internal non-structural walls and other partitions and plaster coverings and plaster work of all internal walls (structural and non-structural) and all partitions within the said premises and the doors door furniture and door frames in such internal walls and partitions;

3 one half severed medially of all non-structural walls separating the said premises from adjoining premises (including the Common Parts) in the Building;

4 the ceilings and floors to the said premises and the respective plaster skin surfaces and coverings (but excluding structural slabs or ceiling and floor joists in over and under the said premises and any lying within the same and the roofs or rafters to and space within the roof);

5 all pipes drains sewers channels watercourses conduits ducts and other conducting media in through over under or upon the said premises and any of the same within the Landlord's Premises exclusively serving the said premises;

6 all landlord's fixtures and fittings at any time in or about the said premises; and

7 the lift, lift shaft and any other plant and equipment within the said premises and exclusively serving them

but excluding:

7.1 the main structure of the Building external walls and any internal structural walls.

7.2 the window frames fitted into the external elevations of the Building.

7.3 the Common Parts.

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Part 3
Rights Granted

The following rights (in common with the Landlord and all others now or hereafter entitled to the like rights as the Landlord may permit (but outside those times by arrangement with the Landlord) and subject to compliance with the Regulations):

1 **ACCESS**

Ingress and egress with or without vehicles over and along the roads and vehicle ways and ramps within the Landlord's Premises to and from the Car Park as the Landlord may from time to time direct and on foot only over and along any other areas within the Landlord's Premises leading to the Building and over the entrance vestibules halls stairways landings passageways and lifts within the Common Parts leading to and from the Demised Premises.

2 **SERVICES**

To use all sewers drains channels watercourses ducts and water gas and electric conduits mains pipes wires and cables or other conducting media and all or any other services now or hereafter during the Perpetuity Period provided for the Demised Premises and laid in under or over the Landlord's Premises or in under or over any other property across which the Landlord shall have rights to carry the same for the passage of surface water and sewage from and water gas electricity and other services to and from the Demised Premises.

3 **TOILET ACCOMMODATION**

To use such of the sanitary conveniences and washing facilities and drinking points in the Building as indicated on the attached plans (whether exclusively or in common with others) and according as they may be allocated to male or female use.

4 **LIFTS**

To use the passenger lifts within the Building provided that the same shall not be used for the carriage of goods (other than normal hand luggage) without the prior consent of the Landlord.

5 **CAR PARKING**

To use fourteen Car Spaces during Usual Business Hours in the position or positions in the Car Park from time to time allocated by the Landlord for the parking only of private motor cars belonging to the Tenant and lawful occupiers of the Demised Premises and their respective servants agents and visitors but without any obligation on the Landlord to ensure that the same are unoccupied or available for use.

6 **ENTRY TO ADJOINING PREMISES**

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To enter upon adjoining or neighbouring parts of the Landlord's Premises at all reasonable times and (except in case of emergency) upon reasonable notice and prior appointment with the Landlord and (as the case may require) with the tenants and occupiers thereof (subject to compliance with any other conditions restrictions and provisions affecting the exercise of such rights) for the purpose of inspecting maintaining cleansing repairing renewing and replacing such of the said lifts plant equipment sewers drains pipes and cables and all connections thereto as exclusively serve the Demised Premises provided that the Tenant in exercising such rights shall do so as expeditiously as possible with all due diligence causing as little damage and inconvenience as possible and not interfering with the Landlord's Premises and forthwith make good to the satisfaction in all respects of the Landlord and the tenants and occupiers of the Landlord's Premises or the owners of any other property and any plant machinery apparatus or equipment relating thereto (as the case may require) affected thereby all damage or disturbance thereby occasioned.

7 **SUPPORT AND SHELTER**

The right of support and shelter for the Demised Premises from other parts of the Building as presently enjoyed.

8 **EMERGENCY ACCESS**

In case of emergency only to use such access ways within the Landlord's Premises as may be allocated from time to time by the Landlord.

Part 4
Rights Excepted and Reserved

1 **SERVICES**

The free and uninterrupted passage and running of water soil gas electricity telephone and other services from and to all other parts of the Landlord's Premises and any other land and buildings (whether belonging to the Landlord or not) adjoining or near to the Demised Premises through and along all ducts conduits pipes drains channels watercourses sewers wires and cables or other conducting media which are now or may hereafter be in over or under the Demised Premises together with the right to connect into the same.

2 **LIGHT AND AIR**

All rights of light air and other easements and rights (but without prejudice to those expressly hereinbefore granted to the Tenant) now or hereafter belonging to or enjoyed by the Demised Premises from or over the other parts of the Landlord's Premises or any adjacent or neighbouring land or buildings.

3 **SUPPORT AND SHELTER**

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The right of support and shelter and all other easements and rights now or hereafter belonging to or enjoyed by other parts of the Landlord's Premises and/or any adjoining or neighbouring land or buildings belonging to the Landlord at any time during the Term Entry for works to provide Services and for purposes of these Presents.

4 **ENTRY FOR WORKS TO PROVIDE SERVICES AND FOR PURPOSES OF THESE PRESENTS**

The right to enter the Demised Premises at all times in case of emergency and otherwise at all reasonable times on reasonable notice with or without workmen and others and all necessary appliances and materials for the purpose of:

4.1 inspecting maintaining cleansing repairing altering testing renewing and replacing laying and making connections to the said ducts conduits pipes drains channels watercourses sewers wires and cables and other conducting media and all connections.

4.2 carrying out all works operations or acts necessary to enable the Landlord to provide any of the Services or doing anything whatsoever comprised within the Landlord's obligations in respect of the Landlord's Premises or (whether or not within the same) for which the Tenant is liable hereunder to make a contribution.

4.3 for any other purpose mentioned in these Presents including entry by security staff (if any) employed by the Landlord or its agents at any time by day or night as it or they shall consider fit the persons exercising such rights causing as little damage as reasonably practicable to the Demised Premises and as little disturbance to the Tenant's business as reasonably practicable and making good or procuring the making good of all damage to the fabric thereof thereby occasioned.

5 **EMERGENCY ACCESS**

A right of way without interference through the Demised Premises in the event of fire or other emergency.

6 **WORKS TO AND USE OF ADJOINING PREMISES**

The right at all times during the Term without making any compensation to the Tenant therefore to:

6.1 execute or permit or suffer the execution of works or alterations on or to any part of the Landlord's Premises or any other lands and premises adjoining or near the Demised Premises or the demolition rebuilding alteration or extension of any buildings now or hereafter erected thereon including the right to build on or into any boundary wall of the Demised Premises and make use of any column or support thereof (but not so as to damage the interior surfaces thereof) and to make any excavation in the Landlord's Premises or such other lands and premises and to undermine underpin and shore up the Demised Premises and erect scaffolding in such manner as the Landlord may think fit.

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6.2 use or deal with such other lands and buildings and premises adjoining or near the Demised Premises in such manner as the Landlord may in its absolute discretion think fit provided that the access of light or air to the Demised Premises or any other liberty easement right or advantage hereby granted to the Tenant shall not thereby be materially diminished or interfered with or prejudicially affected provided that such rights shall be exercised so as to cause as little inconvenience to the Tenant as is reasonably practicable and any physical damage caused to the Demised Premises as a result of the exercise of such rights shall be made good to the reasonable satisfaction of the Tenant at the expense of the person causing such damage but (so long as the terms of this clause are observed) the Landlord shall not be liable to the Tenant in damages or otherwise for any inconvenience or otherwise howsoever in relation to any such works carried out things done or use or dealing as aforesaid.

7 MEES WORKS

7.1 The right to enter the Demised Premises to carry out MEES Works to the Demised Premises.

7.2 The right in paragraph 7.1 is subject to the following conditions:

7.2.1 the right is only exercisable with the Tenant's prior written consent (for the avoidance of doubt, such consent shall be absolute) and at such times as the Tenant shall permit entry;

7.2.2 the Landlord must comply and procure that all parties exercising this right complies with the Tenant's reasonable security requirements and acknowledging that all parties exercising the right will not enter without being in the company of a representative of the Tenant, who the Tenant will procure is available to accompany the Landlord at the dates and times agreed between the parties acting reasonably;

7.2.3 the Landlord must cause as little interference to the business lawfully carried on at Demised Premises as reasonably practicable and shall cause as little physical damage to the Demised Premises or its contents as is reasonably practicable, making good such damage to the Demised Premises or its contents that is caused as soon as reasonably practicable; and

7.2.4 the Landlord will be responsible for all costs and expenses of the works and shall indemnify the Tenant for all reasonable and proper costs and expenses incurred by the Tenant as a result of the works.

8 OTHER EASEMENTS

All other easements and rights in the nature of easements or quasi easements now enjoyed by the Demised Premises over any property adjoining or near the Demised Premises or which may at any time be acquired over any such property for the benefit of the Demised Premises and to which the Landlord may be or become entitled.

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SCHEDULE 2
TENANT'S COVENANTS

1 **PAY RENTS**

To pay to the Landlord the Basic Rent and other rents payable under these Presents at the times and in the manner as provided in these Presents without any deduction set-off or counterclaim except as aforesaid the Basic Rent and any Value Added Tax to be paid by means of a banker's standing order or such other method as the Landlord may reasonably require.

2 **PAY OUTGOINGS**

2.1 To pay and discharge all existing and future rates taxes duties charges assessments impositions and outgoings whatsoever (whether parliamentary parochial local or of any other description and whether or not of a capital or revenue or non-recurring nature and even though of a wholly novel character) which are now or may at any time hereafter be assessed charged levied or imposed or payable:

2.1.1 in respect of the Demised Premises; or

2.1.2 on or by any estate owner landlord tenant or occupier in respect thereof (except (subject to paragraphs 29.3 and 30 of this Schedule) any tax payable by the Landlord as a direct result of the ownership of or an actual dealing by the Landlord with its reversionary interest in the Demised Premises or the receipt by the Landlord of the Basic Rent) and if any rates taxes duties charges assessments impositions or outgoings shall be assessed charged or imposed upon or payable in respect of the Demised Premises and other premises or on or by the Tenant with other persons then so far as the same is not comprised in the Service Charge to pay to the Landlord on demand a fair proportion thereof to be settled in case of dispute by the Landlord's Surveyor.

2.2 To pay for all gas electricity and water consumed or used on or for the Demised Premises and all standing charges and charges for meters and installation hire and maintenance in respect thereof and to observe all regulations and requirements of the relevant supply authorities and to pay for all telex telephone and other communication systems serving the Demised Premises. The Tenant is to have the benefit of the Landlord's negotiated tariff in respect of electricity.

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2.3 If the Demised Premises shall at any time during the Term be unoccupied for any period during which the Tenant or any other person shall be entitled to claim or take the benefit of any relief from the payment of general rates or other outgoings and in consequence the amount of any claim to or benefit of similar relief which would otherwise be available to the Landlord in respect of any period following the Termination of the Term if the Demised Premises were vacant shall or may be reduced or lost to pay to the Landlord on demand in respect of such period an amount equal to the whole amount of the value to the Landlord of the claim or benefit which is not available to the Landlord and which would otherwise have been available to the Landlord in respect of the Demised Premises had the same been fully occupied throughout the Term and left unoccupied thereafter (no account being taken of any period of actual occupation by any person after the Termination of the Term).

3 **COMMON EXPENSES**

Without prejudice to the generality of any other covenant by the Tenant to pay on demand a fair proportion of the costs and expenses (so far as not comprised in the Service Charge) of making repairing maintaining rebuilding, renewing, replacing lighting, insuring, connecting and cleansing all ways roads pavements sewers drains pipes channels watercourses gutters wires cables boundary walls fences party walls structures passageways open areas and other conveniences which shall at any time belong to or be used for the Demised Premises in common with other premises near or adjoining thereto the amount due in case of dispute to be assessed by the Landlord's Surveyor (acting reasonably) provided that if any such repair maintenance renewal replacement and cleansing or increased frequency thereof is caused directly or indirectly by any particular use of the Demised Premises or of any services provided thereto or is in respect of only part of the Landlord's Premises which includes the Demised Premises and the Landlord's Surveyor reasonably considers that the cost thereof should not be included in the Landlord's Expenses then and in any such case the costs and expenses so incurred may be apportioned under this paragraph in which case the Tenant shall not be charged with any part of such costs and expenses as part of the Service Charge payable for the Relevant Financial Year.

4 **REPAIR**

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To keep in good and substantial repair and condition and as necessary in whole or in part replace and renew and keep clean the Demised Premises and the water ventilation sanitary apparatus heating and/or Air-Conditioning and the walls sewers drains plant and machinery and appurtenances thereof with all necessary reparations cleansing and rebuilding works and amendments whatsoever (regardless of the age or state of the Demised Premises) and to replace from time to time all landlord's fixtures fittings and appurtenances in the Demised Premises which may be or become beyond repair at any time during the Term provided that there shall be excepted damage by any of the Insured Risks or an Excluded Risk unless the insurance of the Demised Premises or the Landlord's Premises effected by the Landlord has been vitiated or prejudiced or payment of the insurance monies refused in whole or in part as a consequence of any act or default of the Tenant or any undertenant or their respective servants agents licensees or visitors.

5 **DECORATION MAINTENANCE AND CLEANING**

Without prejudice to the generality of the foregoing covenant:

5.1 to carry out any painting decoration or other treatment in a proper and workmanlike manner to the reasonable satisfaction of the Landlord and in accordance with such reasonable directions in regard thereto as may from time to time be communicated to the Tenant by or on behalf of the Landlord.

5.2 forthwith to replace all broken or damaged glass in the Demised Premises as and when the same is broken or damaged with glass of the same colour tint and specification.

5.3 to clean the internal faces of all windows and window frames and other glass comprised in the Demised Premises as necessary but at least once in every month.

5.4 to procure that all electrical and mechanical plant and equipment (including central heating equipment but excluding any of the Common Parts) and Air-Conditioning is properly and regularly serviced and maintained by qualified persons approved in writing by the Landlord such approval not to be unreasonably withheld.

6 **YIELD UP**

At the Termination of the Term the Tenant shall not be required to yield up the Demised Premises repaired in accordance with and in the condition required by this Lease, but shall instead be required to yield up the Demised Premises to the Landlord at the Termination of the Term clear of all tenant furniture and chattels in a clean, tidy, broom swept and safe condition, with all services and utilities safely capped off.

7 **PERMIT ENTRY FOR LANDLORD AND OTHERS**

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To permit the Landlord and its servants agents contractors and workmen, the Landlord's Surveyor, the Surveyor and (if authorised by the Landlord) the owners, tenants, and occupiers of any adjoining or neighbouring premises and their respective servants agents contractors and workmen with all necessary plant machinery, equipment, tools and appliances at all times in case of emergency and otherwise at any reasonable times on reasonable prior notice without interruption or interference to enter upon the Demised Premises and remain thereon for such period as shall be necessary:

7.1 to examine the Demised Premises to ensure that nothing has been done or omitted which constitutes a breach or non-performance of any of the covenants contained in these Presents;

7.2 to take schedules or inventories of the fixtures and things to be yielded up at the Termination of the Term;

7.3 to exercise any rights excepted and reserved to the Landlord or the disposal or charge of the Landlord's Premises;

7.4 to enable the Landlord to comply with any of its covenants and for all purposes in connection with the Services; and

7.5 to inspect and execute repairs additions or alterations to or upon or maintaining the Landlord's Premises and any of the services thereof and any adjoining or neighbouring premises the person exercising such rights making good to the Tenant all damage on the Demised Premises thereby occasioned (but so that the Landlord shall be under no liability except in respect of entry personally by the Landlord or its contractors servants or agents).

8 REMEDY WANTS OF REPAIR AND ENTRY FOR LANDLORD ON DEFAULT

8.1 Forthwith to proceed to remedy repair and make good all breaches of covenant wants of repair and defects of which notice shall be given by the Landlord to the Tenant and which the Tenant shall be liable to remedy repair or make good provided always that if within two months from the date of such notice the Tenant shall fail to commence to repair and thereafter diligently proceed to complete and make good the wants of reparation and other matters prescribed in such notice to permit the Landlord and all persons authorised by the Landlord with workmen servants agents and others with or without plant machinery equipment tools and appliances to enter into and stay upon the Demised Premises and repair treat preserve protect restore and make good the same at the expense of the Tenant (but so that the Landlord's right of entry or any other right or remedy of the Landlord under these Presents shall not thereby be prejudiced) and to pay on demand the costs and expenses thereof together with interest thereon at the Prescribed Rate from the respective dates of expenditure by the Landlord to the date of reimbursement which amounts shall be a debt due from the Tenant to the Landlord and recoverable at the option of the Landlord by action or as rent in arrear.

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8.2 To pay to the Landlord on demand all costs and expenses incurred by the Landlord after the Termination of the Term in repairing restoring painting or otherwise treating the Demised Premises so as to put them into the state and condition required by the Tenant's covenants together with interest thereon at the Prescribed Rate from the respective dates of expenditure by the Landlord to the date of reimbursement.

9 **LETTING AND DEALING BOARDS:**

To permit the Landlord and its servants and agents at any time during the Term to enter upon the Demised Premises and affix and retain without interference in a conspicuous position (but not so as materially to interfere with the access of light and air to the Demised Premises) notices for re-letting the same in the event that the Tenant is not exercising its right to a renewal of this Lease under Part II of the 1954 Act (in the three months prior to Termination of the Term only) or selling the Landlord's interest in the Landlord's Premises and to permit all persons with written authority from the Landlord or the Landlord's agents at reasonable times of the day on not less than 48 hours' notice to enter and view the Demised Premises without interruption.

10 **NOTICES**

Immediately on receipt by the Tenant of any notice or communication from a competent authority affecting the Landlord's Premises or the user thereof to give to the Landlord a copy thereof and in any event when the Tenant first becomes aware of the service of such notice or of any circumstances likely to lead to service of such a notice to give to the Landlord full particulars of such notice or circumstances and to make or join in making such objection or representation against or in respect of the same as the Landlord may reasonably require.

11 **STATUTORY REQUIREMENTS**

11.1 At the expense of the Tenant to comply with all present and future Acts of Parliament relating to the Demised Premises or the use thereof or the employment of persons therein and to execute at the Tenant's own expense any work required to be carried out in or to the Demised Premises where such work is required to be carried out by the owner or the occupier thereof.

11.2 Not at any time knowingly to do or omit on or about the Demised Premises any act or thing by reason of which the Landlord may under any such Acts incur or have imposed upon it or become liable to pay any levy penalty damages compensation costs charges or expenses.

11.3 To obtain all licences permissions and consents and to execute and do all works and things and to bear and pay all expenses required or imposed by any such Acts in respect of any works carried out by the Tenant on the Demised Premises or of any user thereof or of the employment of any persons therein by the Tenant.

12 **PLANNING**

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Without prejudice to the generality of the preceding paragraph and except to the extent that the same may be undertaken by the Landlord in connection with the reinstatement of the Demised Premises pursuant to its covenant in that respect contained in Schedule 3:

12.1 at the expense of the Tenant to comply with the provisions and requirements of the Planning Acts and all licences consents permissions and conditions now or hereafter existing granted or imposed there under or under any enactment repealed thereby so far as the same are obtained or implemented by the Tenant and relate to or affect the Demised Premises or any operations works acts or things now or hereafter carried out executed done or omitted by the Tenant thereon or the use thereof by the Tenant for any purpose.

12.2 so often as necessary at the expense of the Tenant to obtain from the Local Planning Authority or other competent authority all such licences consents and permissions as may be required under the Planning Acts for any works to or operations on the Demised Premises or the institution or continuance of any use by the Tenant thereof but so that the Tenant shall not make any application for planning permission without the previous written consent of the Landlord.

12.3 notwithstanding any consent which may be granted by the Landlord not to carry out any works or any alteration or addition to the Demised Premises or any change of use thereof (being works or an alteration or addition or change of use for which a planning permission needs to be obtained) before a planning permission therefore has been produced to the Landlord and acknowledged in writing as satisfactory to it provided that the Landlord may refuse to express its satisfaction on the ground (inter alia) that the period thereof or anything contained therein or omitted there from in the reasonable opinion of the Landlord would be or be likely to be (whether during the Term or following the Termination of the Term) prejudicial to the Landlord's interest in the Landlord's Premises or any adjoining or neighbouring land and property belonging to the Landlord.

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12.4 unless the Landlord shall otherwise direct to carry out before the Termination of the Term any works stipulated to be carried out to the Demised Premises by a date subsequent to the Termination of the Term as a condition of any planning permission which may have been granted during the Term or implemented by the Tenant or any person driving title under or through the Tenant before or during the Term in any case where permission for any development has been granted subject to conditions the Landlord (acting reasonably) shall be entitled as a condition of giving its consent to the permitted development to require the Tenant to provide security to the Landlord satisfactory to the Landlord for the compliance with such conditions and the development shall not be commenced or the use instituted until such security shall have been provided to the satisfaction of the Landlord not to do any thing to be done on or with reference to the Demised Premises which may be grounds for or cause or lead to the compulsory acquisition thereof not to serve any purchase notice under the Planning Acts requiring any authority to purchase the interest of the Tenant in the Demised Premises if and when called upon so to do to produce to the Landlord or as directed by it to any third party all such plans documents and other evidence as the Landlord may reasonably require in order to satisfy itself that the provisions of the covenants contained in paragraphs 11 and 12 of this Schedule have been complied with in all respects.

13 **ALTERATIONS**

13.1 Not to change the existing design elevation or appearance of the Demised Premises or cut maim or remove any of the walls floors ceilings partitions beams columns or other parts thereof nor to make any alterations or additions in or to the Demised Premises except (with the prior written consent of the Landlord which shall not be unreasonably withheld) alterations required to comply with the provisions of paragraphs 11 and 12 of this Schedule provided that in either such case it may be a condition of any such consent that the Tenant shall enter into such covenants with the Landlord with regard to the execution of the works in such form as the Landlord may reasonably require.

13.2 No consent shall be required for the erection or removal of or alterations to internal non-structural demountable partitioning not involving any cutting maiming altering or injuring the Demised Premises and which do not in the reasonable opinion of the Landlord interfere with the Services or the heating systems or smoke detectors within the Landlord's Premises and that will not have an adverse impact on the EPC rating of the Demised Premises provided that the Tenant gives the Landlord not less than 14 days prior written notice of its intention to commence such works.

13.3 Not to make any alterations or additions to the electrical gas water or telephone installations of the Demised Premises without the prior written consent of the Landlord (such consent not to be unreasonably withheld) provided always that such works do not adversely affect the EPC for the Demised Premises and to procure that all such alterations or additions are carried out by suitably qualified and skilled persons in accordance with regulations and standards of the relevant supply authority.

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13.4 To carry out and complete the work involved in all alterations to the Demised Premises in accordance with the terms of all consents with materials of suitable good quality in a proper and workmanlike manner and to the reasonable satisfaction of the Landlord.

13.5 On completion of the installation of anything which shall become part of the Demised Premises to give to the Landlord reasonable written notice of the same stating the full cost of reinstatement for insurance purposes thereof.

13.6 Not to erect or affix to the exterior of the Demised Premises or the Building any aerials posts wires fittings or works for telegraphic communication nor to make any aperture in any wall nor to affix any machinery to the Demised Premises provided that it is acknowledged that the Tenant's existing Sky apparatus and IT cabling and equipment do not constitute a breach of this clause.

13.7 Not to interfere with or otherwise cause access to any pipes wires cables rains sewers ducts watercourses conduits subways or other conducting media which now are or may hereafter be in or through the Demised Premises or the Landlord's Premises to be or become more difficult than the same now is nor to cause or permit the drains sewers pipes conduits ducts watercourses subways cables wires and other conducting media serving flip Demised Premises or within the Landlord's Premises to be overloaded or subjected to use in excess of that for which the same were designed or which may restrict the level of supply of water air gas electricity or other services to other parts of the Landlord's Premises.

13.8 if the Tenant or any other occupier of the Demised Premises shall carry out any building work alteration excavation change of use or any other development on or to the Demised Premises to indemnify the Landlord against all liability whether immediate or consequential for any tax levy imposition or charge of whatsoever nature for which the Landlord may be or become liable as a result of the same and also against any further liability to tax flowing from this indemnity or any payment pursuant to it and to repay to the Landlord on demand the amount thereof together with interest at the Prescribed Rate from the date of payment by the Landlord to the date of such repayment all which sums in default of payment shall be recoverable at the option of the Landlord by action or as rent in arrears.

14 **SIGNS**

14.1 Not to affix to or display on or permit to be affixed to or displayed on the Demised Premises or the Landlord's Premises any sign hoarding poster placard blind or advertisement whatsoever which shall be visible from the outside of the Demised Premises or the Common Parts except with the prior written consent of the Landlord such means of identification and other notices stating the name of the Tenant or any other permitted occupier of the Demised Premises and the nature of its business as shall be reasonably necessary in connection with the use and occupation of the Demised Premises for the time being the number position size lettering design and materials of which shall first have been approved in writing by the Landlord PROVIDED THAT the Tenant remains responsible for complying with the Planning Acts.

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14.2 To give to the Landlord's Surveyor details of the title of the Tenant or other permitted occupiers of the Demised Premises for the time being for signs in the Landlord's Premises and to pay to the Landlord on demand all costs incurred by the Landlord in displaying or changing such title provided always that the Landlord shall not be required to display more than one name for each floor of the Demised Premises Dangerous and deleterious substances.

15 DANGEROUS AND DELETERIOUS MATERIALS

Not to keep on the Demised Premises any substance of a dangerous corrosive combustible explosive radio-active volatile unstable or offensive nature or which might in any way injure by percolation corrosion or otherwise the Demised Premises or the sewers and drains serving the same (except with the prior written consent of the Landlord and after giving due notice to any insurers of the Demised Premises and subject to any requirements imposed by them (with which the Tenant shall comply) small quantities of inflammable materials used in connection with the business carried on in the Demised Premises) or the keeping or use of which may contravene any statute order regulation or bye-law nor to stop up or obstruct in any way or permit oil or grease or other deleterious substances to enter by any means the pipes drains sewers ducts conduits or watercourses serving the Demised Premises or the Landlord's Premises or any adjoining or neighbouring premises and in the event of such obstruction or injury forthwith to remedy the same and make good all damage to the entire satisfaction of the Landlord.

16 FIRE PRECAUTIONS

16.1 At the expense of the Tenant to comply with all requirements and recommendations (whether legally enforceable or not) from time to time of the appropriate authority and of any insurers of the Demised Premises in relation to fire precautions affecting the Demised Premises and to keep and maintain sufficient fire fighting and extinguishing apparatus in and about the Demised Premises installed in compliance with such requirements and recommendations and with any legal requirements and open to inspection and maintained to the reasonable satisfaction of the Landlord and of any insurers of the Demised Premises and not to obstruct the access to or means of working of the same.

16.2 Not to remove or interfere with any fire fighting or extinguishing apparatus or appliances or any fire alarm system or associated equipment provided by the Landlord for the Landlord's Premises nor to obstruct the access to or means of working or operation of any of the same.

17 SECURING UNOCCUPIED PREMISES AND USE OF COMMON PARTS

17.1 Throughout any period during which the Demised Premises are closed for business or are unoccupied whether or not furnished to keep the Demised Premises fully secured and (if not provided as part of the Services) to provide such caretaking and other arrangements as may be necessary to give the Demised Premises reasonable protection from vandalism theft or unlawful occupation.

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17.2 Not to cause any damage or obstruction to the Common Parts or to the means of working of any plant machinery apparatus or services comprised within the Common Parts.

18 **LOADINGS**

Not to impose (whether by using machinery or otherwise) on any part of the floors, roof, roof trusses, ceilings or the structure of the Landlord's Premises any load or weight greater than that which the same are designed or constructed to bear with due margin for safety nor to place safes or other heavy articles within the Demised Premises except in positions approved by the Landlord nor to use any roof space for storage of goods nor by machinery or otherwise to cause or permit any undue vibration to or nuisance by noise or otherwise in the Demised Premises.

19 **USER**

Not to use and occupy the Demised Premises other than for the Permitted Use and in particular not to use the Demised Premises or any part thereof:

19.1 for residential purposes or as sleeping accommodation.

19.2 for any noisy noisome noxious offensive or dangerous trade art manufacture business or occupation or for any sale by auction public exhibition political meeting show spectacle or gambling or for any illegal or immoral purpose.

19.3 in any way or for any purpose which may be or tend to become an annoyance nuisance damage disturbance or inconvenience to or prejudice the Landlord or the Landlord's Premises or the owners or occupiers of any premises adjoining or near the Demised Premises or the neighbourhood.

20 **INSURER'S REQUIREMENTS**

20.1 To carry out at the Tenant's expense such works and other precautions as may be required by any insurers of the Building in accordance with their directions and not to carry on upon the Demised Premises or any adjoining property controlled by the Tenant any trade business or activity or do or permit any act or thing on or in relation to the Demised Premises which may make void or voidable any policy of insurance of the Landlord's Premises or of any adjoining or neighbouring premises belonging to the Landlord or render any increased or extra premium payable for such insurance.

20.2 To pay forthwith on demand to the Landlord the whole of the amount (including professional and other fees and costs) which should have been recoverable under any insurance of the Landlord's Premises or any adjoining or neighbouring premises of the Landlord rendered irrecoverable as a consequence of any act or default of the Tenant or any undertenant or their respective servants agents licensees or visitors.

21 **NOTIFY DAMAGE BY INSURED RISKS**

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To give immediate written notice to the Landlord of any destruction of or damage to the Demised Premises or on becoming aware of the same to any other part of the Landlord's Premises stating (if possible) whether and to what extent the same was brought about directly or indirectly by any of the Insured.

22 **RISKS**

22.1 **Prevent encroachments:**

22.1.1 Not knowingly to permit any owner of any property adjoining or near the Demised Premises to acquire any rights of way light or air or other privilege or easement or make any encroachment over against out of or upon the Demised Premises nor to give any acknowledgement that the Demised Premises enjoy any such rights by the consent of any third party and as soon as the Tenant shall become aware thereof or of any act or thing which might result in the acquisition or making of any of the same to give immediate written notice thereof to the Landlord and to adopt or permit the Landlord to adopt such means as may be necessary or convenient for preventing the acquisition or making of any of the same and at the joint cost of the Landlord and Tenant to take consent to or bring all actions in the name of the Tenant as the Landlord may think fit or (at the option of the Landlord) to join with the Landlord in taking such steps or action as may be reasonably required by the Landlord for preventing any of the same from being acquired or made; and

22.1.2 Not without obtaining the prior written consent of the Landlord to stop up darken or obscure any windows or lights belonging to the Demised Premises.

23 **ALIENATION**

Charges

23.1 Not to charge the Demised Premises as a whole or in part Declarations of Trust.

Declarations of Trust

23.2 Not to execute any declaration of trust with regard to the whole or any part of the Demised Premises or these Presents Assignments.

Assignments

23.3 Not to assign the Demised Premises or these Presents in any part less than the whole.

23.4 Not to assign the whole of the Demised Premises:

23.4.1 (if the Landlord shall reasonably so require) without obtaining from a guarantor or guarantors reasonably acceptable to the Landlord a full guarantee of the covenants of the proposed assignee by deed in such form as shall be reasonably required by the Landlord or other security for the performance of the covenants on the part of the Tenant contained in the Presents;

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23.4.2 if the proposed assignee is a company which is in the same group of companies (within the meaning of Section 42 of the 1954 Act) as the Tenant;

23.4.3 unless in the reasonable opinion of the Landlord the assignment to the proposed assignee will not have an adverse effect on value of or would not otherwise adversely affect the Landlord's reversion to the Demised Premises relative to the value of such reversion on the day after the date of this Lease (having regard to the effects of inflation); nor

23.4.4 if in the reasonable opinion of the Landlord the proposed assignee is not of sufficient financial standing to enable it to pay the rents reserved from time to time by these Presents and otherwise perform the covenants on the part of the Tenant contained in these Presents;

23.5 Not to assign or transfer the whole of the Demised Premises otherwise than in accordance with nor without in each and every such case first complying with the foregoing provisions and subject to having complied with them and subject to sub-paragraph 23.6 below not without obtaining the prior written consent of the Landlord which consent shall not be unreasonably withheld or delayed.

23.6 The Landlord and the Tenant agree that for the purposes of Section 19(1A) of the Landlord and Tenant Act 1927 the Landlord may give its consent to an assignment subject to conditions that:

23.6.1 the Tenant enters into an Authorised Guarantee Agreement;

23.6.2 any guarantor whose guarantee is subsisting immediately before the assignment enters into a guarantee with the Landlord in such form as the Landlord may reasonably require of the Tenant's obligations under the Authorised Guarantee Agreement referred to in sub-paragraph 23.6.1 above; and

23.6.3 the assignment shall not take place until any requisite consent of any superior landlord or mortgagee has been obtained and any lawfully imposed condition(s) of such consent satisfied.

Underlettings

23.7 Not to underlet any part or parts of the Demised Premises.

23.8 Not to underlet the Demised Premises or any part thereof nor to permit the creation of any derivative underlease:

23.8.1 at a fine or premium or any other consideration or at a rent which at the commencement of the term of such underletting is less than the open market rental value thereof without fine premium or any other consideration;

23.8.2 at a rent payable more than two quarters in advance;

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23.8.3 other than on terms which shall contain provisions for review of the rent thereby reserved at such intervals no less frequent than shall be normal in the market for similar property at the time of the grant thereof having regard to the terms of the proposed underlease; and

23.8.4 other than on terms which shall incorporate such provisions as are necessary to ensure that any such underlease or derivative underlease is consistent with and in all respects no less onerous than the provisions of these Presents including (but without prejudice to the generality of the foregoing) provisions similar to those contained in this sub-paragraph 23.8 and in sub-paragraph 23.10 and in paragraph 4 of Schedule 4;

23.9 Not to underlet the Demised Premises without obtaining from the underlessee:

23.9.1 a covenant by deed with the Landlord that the underlessee will throughout the term granted by the underlease:

(a) (in the case of an underletting of the whole of the Demised Premises) observe and perform all the covenants and conditions on the part of the Tenant (other than the covenant to pay the Basic Rent) contained in these Presents;

(b) (in the case of an underletting of part only of the Demised Premises) observe and perform all the covenants and conditions on the part of the tenant (other than the covenant to pay rent) contained in the underlease and pay if required by the Landlord that proportion of the Service Charge as the Lettable Area of the part of the Demised Premises underlet bears to the Lettable Area of the whole of the Demised Premises (such proportion in case of dispute to be conclusively determined at the expense of the Tenant by the Landlord's Surveyor);

(c) not assign or sublet part only of the premises demised by the underlease;

(d) not sub-let or part with possession or occupation of the whole or any part of the premises demised by the underlease except in a manner and on terms permitted by this paragraph 23 nor without first obtaining the written consent of the Landlord under these Presents which consent shall subject to compliance with such requirements not be unreasonably withheld;

(e) not assign the whole of the premises demised by the underlease except in a manner and on terms permitted or required by this paragraph 23 and by the terms of the underlease, being terms in accordance with the provisions of this paragraph 23 nor without first obtaining the written consent of the Landlord under these Presents which consent shall subject to compliance with such requirements not be unreasonably withheld

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(f) procure that any derivative interest created out of such underlease shall contain provisions equivalent to those contained in Sub-paragraphs 29.9.1(a) to (e) above

23.9.2 a covenant from the underlessee in the underlease (which covenant the Tenant shall enforce) in the terms of sub-paragraphs (c) (d) (e) and (f) above; and

23.9.3 an agreement in the underlease between the underlessor and the underlessee in the same terms as sub-paragraphs 23.4, 23.5 and 23.6 above but with respect to the premises demised by and the basic and other rents reserved by the underlease.

23.10 Not to underlet part (as opposed to the whole) of the Demised Premises without ensuring that any immediate or derivative underlease shall contain an agreement excluding in relation to the tenancy to be created by such underlease the provisions of Sections 24-28 inclusive of the 1954 Act (as amended).

23.11 Not to underlet the whole of the Demised Premises or underlet any part or parts thereof otherwise than in accordance with nor without in each and every such case first complying with the foregoing provisions and subject thereto not without obtaining the prior written consent of the Landlord which consent shall not be unreasonably withheld or delayed.

Further provisions relating to underleases

23.12 Not at any time during the Term to be a party or privy to an agreement or arrangement for commutation in whole or in part of the rent reserved by any underlease in consideration of the payment of a lump sum or any theft consideration.

23.13 Not upon a review of the rent reserved by any underlease to agree the amount of any such reviewed rent without the prior written consent of the Landlord (such consent not to be unreasonably withheld).

23.14 Not at any time expressly or by implication to waive any breach of covenant or obligation by any underlessee or any assignee of any underlease nor vary the terms of any permitted underlease nor accept a surrender of nor forfeit any underlease in any such case without the prior written consent of the Landlord (such consent not to be unreasonably withheld or delayed).

Sharing Occupation

23.15 Not to part with or share possession or occupation of the Demised Premises or any part thereof other than in a manner permitted by sub-paragraph 23.16.

23.16 Subject to the Tenant giving not less than 14 days' prior written notice to the Landlord of the identity of the company and of the part of the Demised Premises affected (if less than the whole) the Tenant may share occupation of the Demised Premises or the relevant part thereof with a company within the same group of companies (within the meaning of Section 42 of the 1954 Act) as the Tenant:

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23.16.1 for so long only as such company shall remain within such group;

23.16.2 on terms whereby such company is not given exclusive occupation of the Demised Premises or any part thereof and no relationship of landlord and tenant is created;

23.16.3 provided that any rent or other payment received by the Landlord from any such company shall be deemed to have been paid by such company as agent for the Tenant; and

23.16.4 subject to the Tenant indemnifying the Landlord against any and all losses arising as a result of the sharing arrangement

PROVIDED THAT the Tenant (here meaning ITF Licensing (UK) Limited only) may also share occupation of the Demised Premises with Billie Jean King Cup Limited (company number 14940977) subject to complying with sub-paragraphs 23.16.2, 23.16.3 and 23.16.4 in respect of such sharing of occupation save that 14 days' prior written notice of the sharing arrangement is not required.

Disclosure of Information

23.17 Upon every application for consent required by this paragraph 23 to disclose to the Landlord such information including as to the terms proposed as the Landlord may reasonably require.

24 REGISTER DEVOLUTIONS

Within one month of every assignment transfer underlease or charge affecting the Demised Premises or any devolution of the estate of the Tenant therein or these Presents or of any derivative interest and every surrender thereof or the commencement or termination of any sharing of the Demised Premises or part thereof to give notice in writing with particulars thereof to the Landlord and produce such assignment transfer underlease or charge or the Probate of the Will or Letters of Administration or other instrument document or evidence of such devolution or surrender or sharing with a certified copy thereof for the Landlord and to pay to the Landlord a reasonable registration fee of not less than twenty-five pounds plus Value Added Tax thereon.

25 COMPENSATION

To pay or procure the payment to the Landlord of the due and proper proportion (having regard to each party's interest in the Demised Premises) of any compensation paid to the Tenant or payable as a consequence of any notice served on or application refused by any governmental or local authority in respect of the Demised Premises or the use thereof.

26 DEFECTIVE PREMISES

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Forthwith upon becoming aware of the same to give notice in writing to the Landlord of any defect in the Landlord's Premises which would or might give rise to an obligation on the Landlord to do or refrain from doing any act or thing in order to comply with the duty of care imposed on the Landlord pursuant to the Defective Premises Act 1972 and at all times to display and maintain all notices (including the wording thereof) which the Landlord may from time to time require to be displayed at the Demised Premises.

27 **EPC**

27.1 The Tenant must not obtain or commission an EPC in respect of the Demised Premises unless required to do so by the Energy Performance of Buildings (England and Wales) Regulations 2012. If the Tenant is required to commission an EPC, the Tenant must (at the Landlord's option) commission an EPC from an assessor approved by the Landlord or pay the Landlord's proper costs of commissioning an EPC for the Demised Premises.

27.2 The Tenant must cooperate with the Landlord so far as is reasonably necessary to allow the Landlord to commission any EPC for the Demised Premises or the Building and:

27.2.1 provide the Landlord (at the Landlord's cost) with copies of any plans or other information held by the Tenant that would assist in commissioning that EPC; and

27.2.2 allow such access to the Premises to any energy assessor appointed by the Landlord as is reasonably necessary to inspect the Demised Premises for the purposes of preparing any EPC.

27.3 The Tenant must give the Landlord written details on request of the unique reference number of any EPC the Tenant commissions in respect of the Demised Premises.

27.4 The Landlord must give the Tenant written details on request of the unique reference number of any EPC the Landlord commissions in respect of the Demised Premises or the Building.

28 **INDEMNIFY LANDLORD**

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To pay and make good to the Landlord and to keep the Landlord fully and effectually indemnified against all loss costs claims demands liability damage actions and expenses whatsoever incurred or sustained by the Landlord directly or indirectly as a consequence of or in connection with any breach non-performance or non-observance of any of the covenants and conditions on the part of the Tenant contained or implied in these Presents or the use of the Landlord's Premises by the Tenant or any permitted occupier or their respective servants agents licensees or visitors or the exercise of any of the rights granted by these Presents or the existence or condition of any article in or about the Demised Premises or the execution or omission of any works upon the Demised Premises including all costs and expenses incurred by the Landlord in connection with any steps which the Landlord may (at its absolute discretion but without being in any way obliged so to do) take to remedy any breach of covenant or condition by the Tenant or any guarantor contained or implied in these Presents and such indemnity shall be without prejudice to any rights or remedies of the Landlord under these Presents in respect of any breach non-performance or non-observance of any covenant or condition.

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29 **COSTS**

To pay on demand (as to legal costs assessed on the indemnity basis):

29.1 all proper and reasonable legal costs and other costs and professional fees and disbursements incurred by the Landlord in connection with or incidental to:

29.1.1 any application made by the Tenant for a consent or licence (whether the same be granted withdrawn or reasonably refused or proffered subject to any reasonable qualification or condition);

29.1.2 the consideration by the Landlord of whether any pre-condition for the consideration of the giving of consent to any assignment of these Presents has been met;

29.1.3 the negotiation and preparation of any Authorised Guarantee Agreement; and

29.1.4 the consideration of any proposal (including plans and specifications) for and the inspection supervision and approval or otherwise of any works on the Demised Premises or any change in the user thereof;

29.2 expenses including solicitors' costs and surveyors' fees incurred by the Landlord in contemplation of or incidental to or arising from the preparation and service of:

29.2.1 a notice under Section 146 of the Law of Property Act 1925 or of proceedings under Sections 146 and 147 of that Act notwithstanding that in any such case forfeiture is avoided otherwise than by relief granted by the Court; and

29.2.2 any notice whether served on the Tenant or any other person required to be served by virtue of the Landlord and Tenant (Covenants) Act 1995 in connection with any breach of the covenants or conditions on the part of the Tenant contained in these Presents or otherwise pursuant to the Landlord and Tenant (Covenants) Act 1995;

29.3 all expenses including solicitors' costs surveyors' fees and bailiffs' costs and commission incurred by the Landlord in connection with or incidental to any breach non-performance or non-observance of any of the covenants or conditions on the part of the Tenant contained in these Presents or in contemplation of the enforcement thereof including (without prejudice to the generality of the foregoing) the service of all notices relating to any schedules of dilapidations and wants of repair to the Demised Premises and any negotiations in respect thereof and whether served during the Term or within six months after the Termination of the Term (but relating in all cases to such wants of repair that accrued no later than the Termination of the Term and otherwise in accordance with the terms of this Lease) or the levy of distress;

29.4 all Value Added Tax incurred by the Landlord on or included in any amount reimbursable by the Tenant to the Landlord under these Presents.

30 **VALUE ADDED TAX**

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Where any payment due under or by virtue of these Presents is a payment on which Value Added Tax is or may be chargeable (by reason of an election of the Landlord or otherwise) to pay (on the issue of a valid VAT invoice) the amount of such tax in respect of the payment at the rate applicable to that payment.

31 **COMPLY WITH TITLE MATTERS**

To perform and observe all covenants conditions and provisions affecting the Demised Premises and to keep the Landlord fully and effectually indemnified from and against all costs claims demands and liabilities arising from any breach non-performance or non-observance thereof.

32 **REGULATIONS AND DOMESTIC ARRANGEMENTS**

32.1 To observe and conform to and procure that all persons resorting to the Demised Premises observe and conform to the Regulations.

32.2 Not to load or unload goods destined for the Demised Premises except by prior arrangement with and as directed by the Landlord and at such times and in accordance with such conditions or directions as may be made or imposed by the Landlord nor in such manner as to cause other than as little congestion or inconvenience to other users of the Landlord's Premises as possible and to use only such lift and routes through the Common Parts as may reasonably be designated by the Landlord for the conveyance of goods to or from the Demised Premises.

32.3 Not to use passenger lifts for the carriage of goods nor to overload the same and for the carriage of goods to use only the goods lift within the Building on prior appointment with the Landlord and to use all lifts in accordance with such conditions regulations directions limitations or other requirements as may from time to time be made by the Landlord and to observe any loading limits or limits on numbers of passengers specified in notices displayed in any lift.

32.4 To keep the floors of the Demised Premises suitably covered with carpet and to keep the same clean and in good condition and as necessary from time to time.

32.5 To retain all trade and other refuse upon the Demised Premises in a neat and tidy condition and in proper receptacles and to make adequate arrangements for the frequent removal of such refuse from the Demised Premises.

32.6 Not to deposit any refuse on the Car Spaces or the Common Parts.

32.7 Not to use or advertise the address of the Demised Premises in any manner which in the reasonable opinion of the Landlord is detrimental to the reputation of the Landlord's Premises nor to use as the name of the Building any name other than that for the time being allocated to the Building by the Landlord.

32.8 Not to permit or suffer any cooking or heating of food in the Demised Premises except within any kitchen which may (subject to the provisions of paragraph 13 of this schedule) be installed in the Demised Premises which has been fitted with adequate equipment for the extraction of cooking odours.

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33 HEATING VENTILATING AND OTHER SYSTEMS

33.1 Not to dismantle or make any alterations changes or adjustments to the part of the heating system of the Building or Air-Conditioning or otherwise interfere with the operation or functioning thereof other than to operate the external switches valves or other surface controls (if any) intended for use for personal control and regulation by occupants.

33.2 Not to do or omit anything whereby the working of any heating or ventilating system or plumbing or fire detection or alarm system now or during the Term serving the Demised Premises or the Landlord's Premises or Air-Conditioning may be impaired or adversely affected nor whereby the air circulating in any heating Air-Conditioning or ventilating system may become contaminated or fouled.

33.3 To report to the Landlord any malfunction of any heating ventilation plumbing or other service or system serving the Demised Premises or the Common Parts and any damage to the Common Parts as soon as possible after the same has come to the notice of the Tenant.

34 REMOVAL OF FIXTURES AND FITTINGS

Upon being given reasonable prior notice to that effect by the Landlord to do so to remove any furniture fixtures or fittings (other than landlord's fixtures or fittings) installed in the Demised Premises the removal of which is necessary to enable the Landlord to carry out or to facilitate the carrying out of any repair renewal replacement improvement or maintenance of any of the Services or any pipes wires cables ducts conduits or other conducting media within the Demised Premises or the Landlord's Premises Provided that if within three days of the date of the notice given pursuant to this paragraph (or immediately in the case of emergency) the Tenant shall fail to remove such furniture fixtures or fittings then it shall be lawful for the Landlord (but without being obliged so to do) to do so at the expense of the Tenant but without being liable to the Tenant or any other person for any loss or damage occasioned by such removal or for the storage or refixing of the same.

35 USE OF THE CAR PARK

Not in the Car Park or the access road or approaches thereto to carry out any repair to or replacement of parts in or overhaul or test any motor vehicle nor to wash down or otherwise clean any motor vehicle and forthwith to remove from the Landlord's Premises any vehicle which is broken down or otherwise incapable of propulsion under its own power nor to park any vehicle in the Landlord's Premises other than in the Car Spaces.

36 LAND REGISTRY

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36.1 If the grant or any transfer of this Lease and/or of any right appurtenant to it requires to be completed by registration at the Land Registry in order to operate at law the Tenant shall comply with the applicable registration requirements within five weeks after the relevant event and provide the Landlord with an official copy of the relevant register entries evidencing the registration within three weeks after completion of such registration.

36.2 As soon as reasonably practicable following the Termination of the Term to apply for closure of any Land Registry title relating to this Lease and/or the removal from the Landlord's title of any entry relating to this Lease and/or the rights granted by it and if the Tenant shall not within 21 days after Termination of the Term have made such application the Landlord may do so as agent for and on behalf of the Tenant and the Tenant will on demand pay the reasonable costs incurred by the Landlord in so doing.

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SCHEDULE 3
LANDLORD'S COVENANTS

1 QUIET ENJOYMENT

The Tenant paying the Basic Rent payable under these Presents and performing and observing the several covenants and stipulations on the part of the Tenant contained in these Presents may peaceably and quietly hold and enjoy the Demised Premises during the Term without any lawful interruption or disturbance from or by the Landlord or any person rightfully claiming under or in trust for it or by title paramount.

2 INSURANCE

2.1 At all times during the Term to insure (unless such insurance shall be prevented or vitiated by the act or default of the Tenant or any undertenant or their respective servants agents licensees or visitors) the Demised Premises (independently or with other parts of the Landlord's Premises) for such amount being equal to the full cost of reinstatement thereof (or such greater amount as the Tenant may reasonably request in writing from time to time) together with architects' and other professional fees costs of demolition and site clearance and any work which may be required by virtue of any Act of Parliament against loss or damage by the Insured Risks appropriate thereto and loss of rent for three years at the yearly rate payable under these Presents and for such additional amounts in respect of rent prospectively payable on review as the Landlord shall decide and with an insurance office or underwriters of repute upon the usual terms and conditions offered by them for such insurance and through such agency as the Landlord shall select Provided Always that the Landlord shall not be under any obligation to insure any fixtures or fittings installed by the Tenant which have become part of the Demised Premises or any alterations to the Demised Premises unless the Tenant shall have given to the Landlord written notice of such installation or the carrying out of the same and of the full cost of reinstatement thereof and the Landlord has agreed with the Tenant to effect the insurance thereof.

2.2 At the request and cost of the Tenant to notify the insurance office or underwriters of the occupation of the Demised Premises by the Tenant and at the Tenant's request and cost to produce to the Tenant (but not more often than once in any year) sufficient details of the policy or policies of such insurance.

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2.3 In case of damage to or destruction of the Demised Premises by any of the Insured Risks and provided the policy of insurance shall not have been vitiated or payment of the policy moneys refused in whole or part as a consequence of any act or default of the Tenant or of any undertenant or their respective servants agents licensees or visitors to make application for all necessary consents and approvals and forthwith to expend all moneys received by virtue of such insurance (other than in respect of loss of rent) in rebuilding reinstating and making good (as the case may be) the Demised Premises with all reasonable speed when it is lawful so to do (except fixtures and fittings therein in respect of which the Tenant has not given written notice of the installation thereof as herein provided or which the Landlord has not agreed to insure) and in case of rebuilding or substantial reinstatement this covenant by the Landlord shall be satisfied if the Landlord provides in the premises so rebuilt or reinstated accommodation as convenient and commodious as is reasonably practicable but not necessarily identical to the Demised Premises or the Building as the same existed prior to such damage or destruction.

3 **SERVICES**

Subject to the payment by the Tenant of the Basic Rent and the other rents reserved by these Presents and the Service Charge and to substantial compliance with all the covenants agreements and obligations on its part contained in these Presents and unless prevented by strikes lock-outs or other causes beyond its control to use all reasonable endeavours to provide the following services:

3.1 so often as may be necessary and appropriate to repair replace renew amend clean, repair, decorate and paint in a good and workmanlike manner:

3.1.1 the structure of the Building and its roofs foundations and external walls its internal structural walls and the walls which bound the Common Parts (but not the interior faces of any walls bounding any Lettable Space) and its timbers (including any timber joists and beams of the floors and ceilings) chimney stacks gutters and rainwater and soil pipes (provided that it is hereby agreed that the external decoration of the Building shall be postponed to not before the calendar year 2016 (unless urgently required));

3.1.2 the sewers drains channels watercourses ducts and water gas and electric mains pipes wires cables and other conducting media in under and upon the Landlord's Premises other than those comprised in or exclusively serving the Demised Premises or any Lettable Space;

3.1.3 the boilers and the heating and air-conditioning systems and hot water apparatus in the Building (except any now or hereafter installed which exclusively serve the Demised Premises or any Lettable Space and which do not comprise part of a general heating or air-conditioning and/or circulating system serving the Building);

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3.1.4 the lifts lift shafts and machinery (if any) and the passages landings and staircases and other areas within the Building capable of being used for access by the Tenant in common with others; and

3.1.5 the boundary walls and fences of the curtilage of the Landlord's Premises.

3.2 to keep the entrances passageways and corridors within the Common Parts which may reasonably be expected to be used for access by the Tenant clean and reasonably lit.

3.3 provided that the amenities specified in this paragraph are in operation in the Building at the date hereof and available to the Demised Premises (but not otherwise) to supply to the Demised Premises constant hot water by means of the boilers and heating installations serving the Building and also wherever reasonably requisite for the comfort of the occupants of the Demised Premises from 1 October in each year to 30 April of the next year to keep such parts of the Demised Premises as are heated from a central source supplied with heat and to supply hot water for heating to the radiators in the Demised Premises so as to maintain a reasonable and normal temperature.

3.4 so far as practicable to maintain the services of a porter or porters for the performance of the following duties:

3.4.1 to cleanse the entrance halls stairs and passages and attend to the lighting or extinguishing of lights therein;

3.4.2 to remove from the Demised Premises domestic refuse and rubbish for which the Tenant has provided a suitable receptacle for the carriage thereof; and

3.4.3 to provide such other services as the Landlord may consider appropriate

provided that the Tenant shall not instruct nor employ the said porter or porters to perform any special services for the Tenant.

4 **AIR-CONDITIONING**

Not to dismantle or make any alterations changes or adjustments to the Air-Conditioning or otherwise interfere with the operation or functioning thereof.

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SCHEDULE 4
PROVISOS AGREEMENTS AND DECLARATIONS

1 FORFEITURE

These Presents are made on the express condition that if and whenever:

1.1 the Basic Rent or any other rents and charges reserved or made payable under these Presents or any part thereof respectively shall be unpaid for twenty-one days next after the same shall become due (whether formally or legally demanded or not).

1.2 there shall be a breach or non-performance or non-observance of any of the covenants or agreements on the part of the Tenant or stipulations or conditions contained in these Presents imposed on the Tenant.

1.3 the Tenant or any person who shall from time to time have guaranteed to the Landlord the performance of the covenants on the part of the Tenant and conditions imposed on it under these Presents being a company shall go into liquidation (other than a voluntary liquidation of a solvent company for the purpose of amalgamation or reconstruction) or have a winding-up or administration order made against it or be unable to pay its debts within the meaning of Section 123 of the Insolvency Act 1986 or shall enter into a composition with its creditors or a scheme of arrangement of its affairs or have an administrator or an administrative receiver or a receiver or manager appointed over all or any part of its undertaking or assets or being an individual shall have a bankruptcy order or an interim order made against him or enter into a composition with his creditors or scheme of arrangement of his affairs or have an interim receiver appointed in respect of his property.

1.4 the Tenant in any case shall suffer any distress or execution to be levied on the Demised Premises or the contents thereof.

1.5 the Tenant shall take the benefit of any Act for the relief of debtors then and in any such case the Landlord or its agents may at any time thereafter and notwithstanding the waiver or implied waiver of any previous right of re-entry arising under these Presents re-enter upon the Demised Premises or any part thereof in the name of the whole whereupon the Term shall absolutely cease and determine but without prejudice to any rights or remedies which may then have accrued to the Landlord in respect of arrears of rent or other breach or non-performance or non-observance of any condition covenant or agreement on the part of the Tenant contained in these Presents or otherwise.

2 DISTRESS

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2.1 If the Basic Rent or other rents or any other payment to be made by the Tenant under these Presents or any part thereof shall be unpaid and in arrear for fourteen days (whether demanded or not) it shall be lawful for the Landlord (without being liable for any damage caused by the exercise of this power) to enter into and upon the Demised Premises at any time thereafter and by any means (including breaking open any doors or windows) and distrain upon the Demised Premises (which power shall extend to any tenant's and trade fixtures and fittings then therein and for severance and removal thereof) and the distress there and then found to dispose of in due course of law and to apply the proceeds thereof first towards payment of all costs and expenses thereby incurred and secondly towards the Basic Rent or other rents or payments in arrear and in such order as the Landlord shall decide:

2.1.1 If any rent or other payment due from the Tenant under these Presents shall be unpaid fourteen days after the due date for payment thereof (whether formally demanded or not) and shall be paid only after the Landlord's solicitors have been instructed or distress caused to be levied the Tenant shall in addition pay to the Landlord on demand the Landlord's solicitors' costs thereby incurred and all bailiffs commission.

3 NOTICES

3.1 All notices (other than any notice to be served pursuant to Sections 8, 10 or 17 of the Landlord and Tenant (Covenants) Act 1995) to be given under these Presents shall be in writing and Section 196 of the Law of Property Act 1925 as amended by the Recorded Delivery Service Act 1962 shall apply to the service of all such notices and in case of any notice to be served on the Tenant such notice shall also be duly served if left at the Demised Premises or sent to the last known address of the Tenant.

3.2 Notices in connection with these Presents to be served pursuant to Sections 8, 10 or 17 of the Landlord and Tenant (Covenants) Act 1995 shall be served in accordance with that Act and consequently Section 23 of the Landlord and Tenant Act 1927 shall apply to such notices L & T A compensation exclusion.

4 L&T A COMPENSATION EXCLUSION

Subject to the provisions of sub-section (2) of Section 38 of the 1954 Act neither the Tenant nor any assignee or underlessee (whether immediate or derivative) of the Term or of the Demised Premises shall be entitled on quitting the Demised Premises to any compensation under Section 37 of such Act or under any corresponding provisions in any Act amending or replacing the same.

5 SUSPENSION OF RENT

If during the Term the Demised Premises shall be destroyed or so damaged by any of the Insured Risks as to be unfit for occupation and use or the Common Parts shall be so destroyed or damaged by any of the Insured Risks so that no reasonable access is available to the Demised Premises then (provided the insurance of the Demised Premises or the Landlord's Premises or for loss of rent shall not have been vitiated or payment of the policy moneys refused in whole or in part as a consequence of any act

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or default of the Tenant or any undertenant or their respective servants agents licensees or visitors and subject to the payment by the Tenant to the Landlord of an amount equal to any applicable excess under the relevant policy of insurance) the Basic Rent and Service Charge or a fair and just proportion thereof according to the nature and extent of the damage shall as from the date of such destruction or damage for a period equal to the period for which the Landlord has insured loss of rent for the Demised Premises or until the Demised Premises and the means of access thereto have been rebuilt or reinstated (whichever is the shorter period) be suspended and any dispute as to the extent proportion or period of such suspension shall be determined by a single arbitrator to be appointed by the Landlord and the Tenant or (if they cannot agree on such appointment) by the President or other the acting chief officer for the time being of the Royal Institution of Chartered Surveyors in accordance with the Arbitration Act 1996.

6 **DETERMINATION ON DESTRUCTION**

If at the expiration of a period of 6 months calculated from the date upon which the Demised Premises shall have been destroyed or so damaged by any of the Insured Risks as to render them unfit for occupation and use or the Common Parts shall have been so destroyed or damaged by any of the Insured Risks so that no reasonable access is available to the Demised Premises:

6.1 the insurance of the Demised Premises effected pursuant to the covenant by the Landlord in that behalf contained in these Presents or of the Landlord's Premises has not been vitiated or prejudiced by or payment of the policy moneys refused in whole or in part as a consequence of any act or default of the Tenant or any undertenant or their respective servants agents licensees or visitors.

6.2 the rebuilding replacement and/or reinstatement of the Demised Premises or the restoration of access thereto has not been completed then and in such case (unless otherwise agreed in writing between the Landlord and the Tenant prior to the expiration of such period as aforesaid) the Tenant may end this Lease immediately by giving written notice to the Landlord at any time after the expiration of such period but before such reinstatement has been completed provided always that such determination will take place without prejudice to any and all rights then subsisting between the parties to these Presents Landlord to have insurance moneys on frustration.

7 **LANDLORD TO HAVE INSURANCE MONIES ON FRUSTRATION**

If these Presents shall determine under the provisions of paragraph 6 above or the Landlord shall not have completed the rebuilding replacement and/or reinstatement of the Demised Premises or the restoration of access thereto following destruction or damage by any of the Insured Risks at the Termination of the Term then and in either such case all moneys payable or to become payable under any insurance effected pursuant to the covenant on the part of the Landlord in that respect contained in Schedule 3 or in respect of the Landlord's Premises shall be paid to the Landlord for its own use and benefit.

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8 **DOUBLE INSURANCES**

If at any time the Tenant is entitled to the benefit of any insurance of the Demised Premises then the Tenant shall pay or procure that there be paid to the Landlord for its own use and benefit all moneys received or to be received by virtue of such insurance Interest on unpaid rents and other monies.

9 **INTEREST ON UNPAID RENTS AND OTHER MONIES**

If the Basic Rent and any Value Added Tax payable thereon shall not be paid to the Landlord within seven days of the Relevant Rent Day (whether or not demanded) or any other rents or amounts payable by the Tenant to the Landlord under these Presents shall not be paid within fourteen days of the date of demand the Tenant shall pay to the Landlord with any such sums (but without prejudice to any other rights or remedies of the Landlord) interest thereon at the Prescribed Rate calculated on a day-to-day basis from the date on which the same became due and payable down to the date of payment by the Tenant.

10 **NON-ACQUISITION OF EASEMENTS**

The Tenant shall not by Implication of law or otherwise be entitled to any estate or any right privilege or easement whatsoever (except as expressly granted by these Presents) nor shall the Tenant by virtue or in respect of the Demised Premises or these Presents be deemed to have acquired or to be, entitled nor shall it during the Term acquire or become entitled by length of enjoyment prescription or any other means to any such estate right privilege or easement.

11 **RENT ACCEPTANCE WHEN BREACH EXISTS**

11.1 No demand for or acceptance or receipt of the Basic Rent or any other rents or any payment on account thereof shall operate as a waiver by the Landlord of any right which the Landlord may have to forfeit these Presents or re-enter the Demised Premises by reason of any breach of covenant by the Tenant or otherwise notwithstanding that the Landlord may know or be deemed to know of such at the time of such demand acceptance or receipt and the Tenant shall not in any proceedings for forfeiture be entitled to rely on any such demand receipt or acceptance as aforesaid as a defence provided that this provision shall have effect in relation only to a demand receipt or acceptance made during such period (if any) as may in all the circumstances be reasonable for enabling the Landlord to conduct any negotiations with the Tenant for remedying the breach or other matter.

11.2 If the Landlord shall refuse to accept the Basic Rent or any other rents or amounts payable by the Tenant to the Landlord under these Presents in order to avoid a waiver of any right which the Landlord may have to forfeit these Presents or re-enter the Demised Premises by reason of any breach of covenant by the Tenant or otherwise then notwithstanding any tender of the same by the Tenant such sums shall bear interest to be paid by the Tenant at the Prescribed Rate calculated on a day-to-day basis from the date on which the same became due and payable down to the date upon which payment shall be accepted by the Landlord or earlier forfeiture or re-entry.

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12 **TENANT'S COVENANTS FULLY ENFORCEABLE**

Each of the Tenant's covenants contained in these Presents shall remain in full force both at law and in equity notwithstanding that the Landlord may have waived or released temporarily or permanently revocable or irrevocably or otherwise howsoever any similar covenant affecting other parts of the Landlord's Premises or any adjoining or neighbouring premises or have waived any prior breach of any covenant on the part of the Tenant Disputes with adjoining owners.

13 **DISPUTES WITH ADJOINING OWNERS**

Any dispute arising between the Tenant and tenants or occupiers of adjoining or neighbouring premises belonging to the Landlord about any easement right or privilege in favour of or affecting the Demised Premises or the premises adjoining or near the Demised Premises shall be decided by the Landlord's Surveyor (whose decision including as to costs shall be binding upon the Tenant who shall submit to and abide by such decision).

14 **WARRANTY DISCLAIMER**

The Tenant acknowledges that no representation or warranty has been given prior to the date hereof or is given or implied by these Presents that the use now or hereafter proposed by the Tenant for the Demised Premises is or will be or will remain a use which does not constitute a breach of the Planning Acts or will not require planning permission and that no consent which the Landlord may give to any change of use shall be taken as including any such representation or warranty and the Term and the Basic Rent and other rents or amounts payable to the Landlord under these Presents shall not determine by reason of any changes modifications or restrictions of the use of or (save to the extent provided in paragraph 5 of this Schedule) access to the Demised Premises or by the same being or becoming impracticable or prohibited for any reason.

15 **LIMITATION OF LANDLORD'S EXPENSES**

Nothing in these Presents shall require the Tenant to contribute towards the costs of any increased Services required during the Landlord carrying out refurbishment or other works to the further lettable space of the Building.

16 **PARTY WALLS**

Such of the non-structural internal walls floors and ceilings as separate the Demised Premises from other parts of the Landlord's Premises shall be deemed to be party walls floors and ceilings subject to the provisions of Section 38 of the Law of Property Act 1925.

17 **CONTROL OF COMMON PARTS**

The Common Parts shall at all times be subject to the exclusive control and management of the Landlord who shall be entitled to alter stop up close divert or otherwise vary any of the same (subject to leaving or making available for use by the Tenant reasonable alternatives) and (where it is reasonable to do so) to discontinue

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any of the Services and the Landlord shall have the right to construct alter divert maintain renew replace and operate lighting heating ventilating security fire detection fire extinguishing and other systems and conducting media serving the Landlord's Premises and from time to time to change the area level location and arrangement of or add to or reduce the Common Parts and temporarily to close any of the same to such extent as may be desirable to prevent a dedication thereof or the accrual of any rights to any person or the public or for the purpose of inspecting repairing renewing improving replacing altering cleansing or maintaining the Landlord's Premises.

18 **EXCLUSION OF LIABILITY**

The Landlord shall not be liable to the Tenant (except as expressly otherwise herein provided) or any other person in respect of:

18.1 any damage suffered by the Tenant or any undertenant or occupier or their respective servants agents or visitors by reason of any defect in the Landlord's Premises.

18.2 any injury death damage destruction whether to person property or goods or financial or consequential loss due directly or indirectly to or caused by any act neglect omission or default of any other occupier for the time being of the Landlord's Premises (or their respective servants agents or visitors) or of the Landlord or any agent servant contractor or other person employed by the Landlord or any person authorised by the Landlord to enter the Landlord's Premises; and

18.3 any loss damage nuisance interference or annoyance suffered during the carrying out of inspections repairs decorations additions alterations or other works whether structural or otherwise which may appear to the Landlord to be necessary or desirable to the Landlord's Premises.

19 **NO LETTING SCHEME**

19.1 The Landlord shall not be under any liability in damages or otherwise in respect of the manner of the exercise of the Landlord's discretion to take steps or refrain from taking steps in respect of any obstruction of or interference with the Common Parts or any easement right or privilege appurtenant to the Demised Premises by any third party; and

19.2 Nothing shall create any letting scheme or restrict or interfere with the right of the Landlord to grant leases tenancies and other rights of occupation or possession of the Landlord's Premises subject to or free from covenants and conditions similar to those contained in these Presents or subject to other covenants and conditions as the Landlord shall in its absolute discretion require or confer on the Tenant any right to the benefit of or to enforce or impose on the Landlord any liability to enforce any covenant or agreement contained in any lease or other instrument relating to any other part of the Landlord's Premises or the Regulations or limit or affect the right of the Landlord to deal with the same now or at any time hereafter in any manner which the Landlord may think fit.

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20 **CERTIFICATES CONCLUSIVE**

Any decision or certificate of the Landlord's Surveyor on any matter on which he is required or entitled to decide or certify and the Certificate shall be final and binding (save in case of manifest error) and shall not be subject to challenge in any manner whatsoever insofar as the same is a decision or certificate on or is founded on matters or issues of fact or opinion but nothing herein contained shall purport to prevent any such decision or certificate being challenged on any point or issue of law.

21 **REQUIREMENT FOR NOTICE OF WANT OF REPAIR**

Notwithstanding anything contained or implied in these Presents the Landlord shall not be under any liability in respect of any want of maintenance or repair unless the Landlord shall have received actual notice of the want of maintenance or repair and shall thereafter have failed to remedy the same as soon as reasonably practicable.

22 **MODIFICATION OF REGULATIONS**

The Landlord shall be at liberty for the better regulation management care or security of the Landlord's Premises or the comfort safety and convenience of the occupants thereof or persons resorting thereto to add to delete from alter and modify the Regulations from time to time at its absolute discretion.

23 **ENFORCEMENT OF LANDLORD'S COVENANTS**

The covenants on the part of the Landlord contained in or obligations on its part implied by these Presents shall be binding in full on the owner of the reversion expectant on the Termination of the Term but shall not be enforceable against any person who has owned such reversion after he shall have parted with all interest therein.

24 **JURISDICTION**

The High Court of Justice in England shall have non-exclusive jurisdiction to entertain any action or proceedings whatsoever in respect of these Presents or any provision thereof or any matter or thing arising under or by virtue or consequent upon these Presents.

25 **TERMINATION FOLLOWING DAMAGE BY AN EXCLUDED RISK**

25.1 If during the Term the Demised Premises shall be destroyed or so damaged by an Excluded Risk as to be unfit for occupation and use or the Common Parts shall be so destroyed or damaged by an Excluded Risk so that no reasonable access is available to the Demised Premises then the Basic Rent and Service Charge or a fair and just proportion thereof according to the nature and extent of the damage shall be suspended with effect from the date of damage or destruction.

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25.2 If at the expiration of a period of 6 months calculated from the date upon which the Demised Premises shall have been destroyed or so damaged by any of the Excluded Risks as to render them unfit for occupation and use or the Common Parts shall have been so destroyed or damaged by any of the Excluded Risks so that no reasonable access is available to the Demised Premises the rebuilding replacement and/or reinstatement of the Demised Premises or the restoration of access thereto has not been completed then and in such case (unless otherwise agreed in writing between the Landlord and the Tenant prior to the expiration of such period as aforesaid) the Tenant may end this Lease immediately by giving written notice to the Landlord at any time after the expiration of such period but before such reinstatement has been completed.

25.3 Termination of this lease pursuant to paragraph 25.2 will be without prejudice to any right of either party for any antecedent breach of either party's obligations under this lease.

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SCHEDULE 5

Part 1
Particulars of the Landlord's Expenses

All costs and expenses whatsoever incurred by the Landlord whether directly or by way of contribution or reimbursement in or in connection with the provision of the Services or (without prejudice to the generality thereof) under any of the following heads of expenditure charge or allowance:

1 **PERFORMANCE OF COVENANTS**

Complying with the Landlord's covenants contained in paragraph 3 of Schedule 3.

2 **REPAIR MAINTENANCE AND DECORATION**

Inspecting maintaining cleansing (including window cleaning) preparing repairing rebuilding decorating renewing replacing amending carpeting polishing painting and otherwise treating the Landlord's Premises (excluding Lettable Space but including Service Accommodation) and all appurtenances plant machinery apparatus and other things thereto belonging or used in connection therewith including (without prejudice to the generality of the foregoing) all ways roads pavements sewers drains pipes ducts watercourses conduits boundary walls party walls party structures passages, toilets and other conveniences comprised in the Landlord's Premises or which may belong to or be used for the Landlord's Premises whether or not in common with other premises near or adjoining thereto and paying for or making any contribution towards the cost of any of the foregoing.

3 **REPAIR AND MAINTENANCE AND OPERATION OF PLANT AND MACHINERY**

In the interests of good estate management inspecting maintaining insuring overhauling repairing improving (where in the nature of repair) renewing and replacing the heating ventilating and hot and cold water systems the lifts the generator and all other plant machinery apparatus equipment and other things serving the Landlord's Premises and effecting maintenance contracts for and operating any of the same and the cost of any water oil electricity gas and other fuel required for or consumed by the same or used in the provision of the Services or heating and lighting the Common Parts and all meter rents standing charges and other expenses incurred by the Landlord in connection with any of the foregoing.

4 **SECURITY INSTALLATIONS**

Providing operating insuring maintaining improving repairing and renewing security systems and lighting installed in the Landlord's Premises.

5 **TOILET ACCOMMODATION**

Providing hot water to the Building and soap drying facilities and other toilet requisites to toilet accommodation and cleaning such.

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6 **DIRECTORY BOARDS AND THE CAR PARK**

Providing maintaining renewing and replacing street furniture directory boards name directional and other signs in the Landlord's Premises and line marking space marking and the provision and printing of name plates in the Car Park.

7 **OUTGOINGS**

Discharging rates water rates taxes charges assessments impositions and other outgoings whether parliamentary parochial local or otherwise and whether or not of a capital or an annual or regularly recurring or novel nature at any time assessed on or payable by the owner or occupier of or in respect of the Landlord's Premises (other than Lettable Space but including Service Accommodation).

8 **MANAGEMENT FEES**

8.1 Fees of managing agents and others for computing collecting and recovering service charges from occupiers of Lettable Space and for the general management of the Landlord's Premises (excluding fees for negotiating rent reviews or letting Lettable Space) provided that such fees shall not exceed ten per cent of the Landlord's Expenses and that no management charge shall be added to the cost of the electricity; and

8.2 In relation to any services provided by the Landlord or any expenditure incurred Under any of the heads of expenditure set out in this Part of this Schedule in respect of which managing agents are not employed a management fee of 10% of the amount of the relevant expenditure.

9 **AUDIT FEES**

Fees and costs payable in respect of the Certificate and its certification and of accounts kept and audits made for the purpose thereof and of employing accountants or other professional persons for the proper administration of the Landlord's Premises and preparing accounts in connection with the Landlord's Expenses and service charges.

10 **OPEN AREAS AND DISPLAYS**

Keeping planted areas stocked and tended and grassed areas mown and forecourts roadways pathways and open areas of the Landlord's Premises used by the Tenant clean neat and tidy.

11 **STATUTORY REQUIREMENTS**

Taking all steps deemed desirable or expedient by the Landlord to comply with or make representations against or otherwise contest the incidence of the provisions of any legislation or orders or statutory requirements relating or alleged to relate to the Landlord's Premises for which the Tenant is not directly liable under these Presents provided that this shall exclude any costs incurred by the Landlord in procuring energy performance certificates where obtained for the purpose of a sale of the reversion or a letting of part of the Building.

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12 **FIRE FIGHTING AND PRECAUTIONS**

Providing purchasing leasing maintaining insuring testing improving renewing and replacing fire fighting equipment and appliances to the Landlord's Premises and fire prevention alarm detection and precaution measures and related systems and equipment therefore.

13 **STAFF COSTS**

Employing staff and contractors agents workmen porters caretakers housekeepers service staff professional advisers and others directly for the performance of duties in connection with the maintenance management or security of the Landlord's Premises and the provision of the Services and paying all expenditure in relation thereto including (without prejudice to the generality of the foregoing) statutory and such other insurances which the Landlord may be required by statute to pay and providing purchasing hiring and replacing uniforms working clothes protective and safety clothes cleaning and other materials bins receptacles and other equipment and vehicles for the proper performance of their duties and providing and maintaining accommodation whether or not within the Landlord's Premises) for such staff and vehicles.

14 **FUNDING COSTS**

Providing any monies from its own resources by way of loan or otherwise (together with interest thereon at two per centum above Base Rate) or the cost (including interest payable thereon) of loan or overdraft facilities to finance costs incurred by the Landlord of providing any of the Services or paying any of the Landlord's Expenses in advance of reimbursement.

15 **TAXATION**

Any tax of whatsoever nature including all penalties charges and interest thereon paid or payable by the Landlord in respect of any of the heads of expenditure or charge mentioned in this Part of this Schedule or otherwise connection with the provision of the services or the arrangements relating to the sinking or reserve fund interest earning account and insurance policy referred to in these Presents.

16 **REFUSE COLLECTION AND LOCAL AUTHORITY CHARGES**

Removing rubbish and other refuse from the Landlord's Premises including the payment of costs levied by the local authority in relation to the collection of refuse or any other service rendered by the local authority and the provision and replacement of receptacles plant and equipment in connection therewith.

17 **DEFAULT**

Costs and expenses incurred in the recovery of overdue sums payable by any person liable to contribute towards the Landlord's Expenses and any part of the Landlord's Expenses not recovered in whole or in part for any reason from any person (other than the Landlord) Provided that if any sum in respect of an unpaid contribution to the Landlord's Expenses for one Financial Year shall be recovered in a later Financial Year

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the same shall be treated as a credit towards the Landlord's Expenses incurred in the Financial Year in which the same is recovered.

18 **ENFORCEMENT OF COVENANTS**

Enforcing or attempting to enforce any covenant in any lease or licence of the Landlord's Premises where in the opinion of the Landlord such enforcement is in the interests of good estate management and for the benefit of the occupiers of the Building and for the avoidance of doubt such enforcement shall not include the collection of Basic Rent.

19 **SERVICE ACCOMMODATION AND COMMON PARTS**

Providing carpeting equipping furnishing insuring decorating maintaining repairing cleansing heating and lighting (including the repair and replacement of lighting equipment and fittings) Service Accommodation or any other property used for or in connection with the carrying out of any of the Services and paying gas electricity telephone charges and other outgoings of whatsoever nature in connection therewith.

20 **VALUE ADDED TAX**

Value Added Tax payable and not recovered by the Landlord in respect of the Services or any expenditure within this Part of this Schedule.

21 **OTHER MAINTENANCE ITEMS**

Other items properly attributable to the maintenance improvement protection or proper management of the Landlord's Premises and Service Accommodation and provision of the Services not specifically dealt with under the above paragraphs for the benefit of the Landlord's Premises or the tenants or occupiers thereof.

22 **RESERVE FUND**

Reasonable provision for anticipated future expenditure under any of the heads of expenditure charge or allowance referred to in this part of this Schedule or otherwise in connection with the Services.

23 **ADVANCE PAYMENTS ON ACCOUNT OF FUTURE COSTS**

Amounts (assessed on a reasonable and proper basis and which shall be deemed to constitute part of the Landlord's Expenses during the Relevant Financial Year) to be accumulated as allowances or reserves (including without limitation provision for tax which may be payable by the Landlord in respect thereof) towards future costs which may be incurred by the Landlord for the' repair maintenance replacement renewal or decoration of the Common Parts including lifts and other items of plant machinery equipment and apparatus or other reserves for future expenditure under any of the heads of expenditure contained in this Part of this Schedule whether or not of a regularly recurring nature the amounts so charged for individual items (less the amount of any liability to tax of the Landlord in respect of the same) being credited or allowed

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so far as practicable against the cost of the items in respect of which such amounts relate.

Part 2
Calculation and payment of the Service Charge

1 **PREPARATION OF CERTIFICATE**

The Landlord shall as soon as reasonably practicable after the end of the Relevant Financial Year procure the preparation of the Certificate and the delivery of a copy to the Tenant and shall provide copies of any and all invoices which relate to the preparation of the Certificate if reasonably required to do so by the Tenant.

2 **DEMAND FOR AND CALCULATION OF THE SERVICE CHARGE**

2.1 The Tenant shall on demand accompanied by or following the provision of a copy of the Certificate for the Relevant Financial Year pay the Landlord the Service Charge (being the Tenant's Proportion of the Landlord's Expenses calculated in accordance with the Certificate and the whole of the Landlord's Expenses relating solely to the Demised Premises or otherwise apportioned to the Demised Premises pursuant to these Presents) less any interim payments made by the Tenant on account thereof pursuant to this Schedule provided that in any Financial Year the Service Charge (other than in respect of the matters referred to in paragraph 2.2) shall not exceed the Service Charge Cap.

2.2 Any costs incurred by the Landlord in respect of the following shall not be subject to the Service Charge Cap:

2.2.1 all costs for gas, electricity and water consumed by tenants of the Building; and

2.2.2 all costs for gas, electricity, water and other utilities incurred by the Landlord in providing the Services

3 **QUARTERLY INTERIM PAYMENTS ON ACCOUNT**

3.1 The Tenant shall on each Rent Day pay to the Landlord an interim payment being such sum in advance and on account of the Service Charge prospectively payable for the Relevant Financial Year as the Landlord shall consider to be fair and reasonable and notify in writing to the Tenant.

3.2 The Landlord shall be at liberty to revise the interim payment with effect from any Rent Day before the commencement or during the course of any Financial Year by notice in writing to the Tenant and the interim payment payable on each Relevant Rent Day shall unless so revised be equal to the interim payment payable on the last Rent Day.

4 **BALANCING PAYMENT**

If it shall be found upon the issue of the Certificate that the aggregate of the interim payments made by the Tenant to the Landlord during the Relevant Financial Year

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exceeds the Service Charge payable for the Relevant Financial Year the excess shall be allowed to the Tenant against the interim payments next payable or in the event of the Termination of the Term occurring the excess or a duly apportioned part thereof shall be repaid to the Tenant.

5 **REVIEW OF SERVICE CHARGE PROPORTION**

The Landlord (acting reasonably) shall be at liberty at any time to vary the proportion of the Landlord's Expenses or of any item included therein payable under these Presents as part of the Service Charge in respect of the Demised Premises in the event that the previous apportionment thereof does not provide a fair and equitable division of the Landlord's Expenses or such item between tenants of Lettable Space chargeable therewith.

6 **VALUE**

The Landlord shall:

6.1 provide the Services on a value for money and cost effective basis.

6.2 ensure that the character and costs of the Services are relevant to the Building (including its location site use and character) and the occupiers of the Lettable Spaces.

6.3 review regularly the range standard and cost of the Services to ensure that they remain relevant and still represent value for money (either by benchmarking the cost against the market cost or by requiring submission of competitive tenders or quotations as appropriate).

7 **APPLICATION TO THE TERM**

This Part II of this Schedule shall continue to apply notwithstanding the Termination of the Term but only in respect of the period down to the Termination of the Term and for apportionment purposes the Landlord's Expenses for any Financial Year shall be deemed to have accrued evenly on a daily basis throughout the Relevant Financial Year.

8 **RICS CODE OF PRACTICE ON SERVICE CHARGE FOR COMMERCIAL PROPERTY**

In providing the Services the Landlord shall have regard to the aims core principles and best practice recommended in the RICS Code of Practice on Service Charge for commercial property Second Edition 2011 except where there are sound reasons not to do so which reasons the Landlord can justify and explain.

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Part 3
Insurance Rent Calculation

1 **AMOUNT PAYABLE BY THE TENANT**

The Tenant shall on demand pay to the Landlord:

1.1 the Tenant's Proportion of the cost (excluding any part of such cost wholly payable by the Tenant under sub-paragraph 1.2 below or by any other tenant of any other part of the Landlord's Premises under any corresponding provision under its lease) incurred by the Landlord from time to time (without deduction of any agency or other commission paid or allowed to the Landlord which the Landlord shall be entitled to retain for its own benefit free of any obligation to bring the same into account under these Presents) of insuring:

1.1.1 the Landlord's Premises and all conducting media serving the same and all the appurtenances apparatus and other things thereto belonging against the Insured Risks and the cost of demolition and site clearance and architects' surveyors' and other fees;

1.1.2 the boilers heating ventilating plant apparatus and other equipment against breakdown bursting and overflowing or other unforeseen circumstances and damage to the Landlord's Premises arising from leakage or explosion thereof and such other risks and perils as the Landlord may from time to time deem desirable;

1.1.3 the lifts and other plant and equipment against breakdown and such other risks and perils as the Landlord shall from time to time decide; and

1.1.4 property owner's employer's third party and public liabilities of the Landlord or relating to the Landlord's Premises which without prejudice to the generality of the foregoing may include those arising under the Defective Premises Act 1972.

1.2 any increase in the cost incurred by the Landlord of any of the insurances referred to in sub-paragraph 1.1 caused by the use or proposed use of the Demised Premises by the Tenant or any other occupier thereof;

1.3 the cost incurred by the Landlord of obtaining from time to time for insurance purposes a professional valuation (for insurance purposes only) of the Demised Premises or (as the case may require) the Tenant's Proportion of the cost incurred by the Landlord of obtaining from time to time a professional valuation (for insurance purposes only) of the Landlord's Premises;

1.4 the cost of insuring loss of rent for 3 years; and

1.5 in the event of any damage to the Demised Premises by any of the Insured Risks any applicable excess under the relevant insurance policy.

2 **OPTION TO COLLECT AS PART OF THE SERVICE CHARGE**

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If the Landlord shall so require all or any of the amounts payable pursuant to this Part 3 of this Schedule 5 may be collected as part of the Service Charge in which case the said amounts or such of them as the Landlord may require shall be treated as if they were included within Part 1 of this Schedule 5 and be collected pursuant to Part 2 of this Schedule 5 instead of pursuant to this Part 3.

Part 4
Further provisos agreements and declarations

1 **HOURS OF USE**

If the Tenant shall desire to have access to the Landlord's Premises or use the Demised Premises outside Usual Business Hours the Tenant shall make previous arrangements with the Landlord and pay to the Landlord on demand all costs and expenses incurred by the Landlord in making provision for any Services related to such access or use and subject thereto the Tenant may (at the absolute discretion of the Landlord) subject to the availability of the staff required to provide any requisite Services and any security for the Landlord's Premises use or have access to the Demised Premises during such hours outside Usual Business Hours as the Landlord may agree Provided Always that if the Landlord shall in its absolute discretion permit the Tenant to have access to the Landlord's Premises or use the Demised Premises for any period of time during which adequate security staff for the Landlord's Premises are not available the Tenant shall be fully responsible for the security of the Landlord's Premises and shall indemnify the Landlord and its tenants and other occupiers of the Landlord's Premises against all and any consequences which arise because the Tenant does not keep the Landlord's Premises secure during such use or access or leave the same secure thereafter.

2 **INTERRUPTION OF SERVICES**

Notwithstanding anything contained in these Presents the Landlord shall not be liable to the Tenant nor shall the 'Tenant have any claim against the Landlord in respect of:

2.1 any interruption in or to any of the services serving the Landlord's Premises or the Demised Premises or any failure to perform the Services by reason of any inspection repair renewal or maintenance of any systems plant, machinery, installations or apparatus or while any of the same are being replaced nor while any new systems plant machinery installations or apparatus are being installed nor by reason of damage thereto or destruction thereof or other cause beyond the Landlord's reasonable control or mechanical or other defect or breakdown frost or other inclement conditions shortage of fuel materials water or labour or taking steps to comply with any notice given or requirement or direction of any competent authority in respect of the Landlord's Premises Provided that such exclusion of liability shall not extend to any failure of the Landlord to use reasonable endeavours to carry out any repair or maintenance (the need for which has been notified in writing to the Landlord) in accordance with its covenants contained in these Presents;

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2.2 any breach of any obligation relating to the provision of the Services or to the repair or maintenance of the Landlord's Premises or any of the services serving the Demised Premises or the Landlord's Premises until notice in writing thereof shall have been given to the Landlord and then only after the Landlord has been able to obtain all necessary permissions and consents for the performance of its obligations and if the labour and materials required therefore are available and a reasonable time in which to perform or remedy the same has elapsed PROVIDED THAT in the case of those Services specifically mentioned in paragraph 3 of Schedule 3 the Landlord shall use all reasonable endeavours to remedy any such interruption defect breakdown or stoppage as soon as reasonably practicable after becoming aware of the same.

3 **ALTERATIONS TO SERVICES**

The Landlord may from time to time in its absolute discretion withhold add to extend vary and make any alterations to the external or internal arrangement of the Landlord's Premises (other than the Demised Premises) and to the Common Parts including the accesses to the Demised Premises or the Car Spaces and the lifts (if any) and the heating ventilating and/or circulating systems the water and any other plant and apparatus serving or within the Landlord's Premises or the provision of services or carry out the execution of such works if and to the extent that the Landlord at its like discretion deems it desirable to do so for the more efficient conduct or management of the Landlord's Premises and if the Landlord thinks fit may install lifts or heating ventilating or circulating systems plant or apparatus of a different type and suspend the lift service or such systems while work is being executed.

4 **REVIEW OF HEADS OF LANDLORD'S EXPENSES**

4.1 The Landlord shall be at liberty from time to time to review the Services and the heads of cost expenditure charge or allowance included in the calculation of the Landlord's Expenses as it may consider appropriate in the interests of good management and to vary the existing items included in the calculation of the Landlord's Expenses and to add thereto any items of cost expenditure charge depreciation or other allowance provision for future anticipated expenditure on or replacement of any installation plant machinery equipment or apparatus or rental value of any parts of the Common Parts or the Service Accommodation or any parts of the Landlord's Premises used in connection with the provision of the Services not previously included therein and from and after the relevant date of such review such variations to or additional items of cost expenditure charge allowance provision or value shall be included in the calculation of the Landlord's Expenses and the Service Charge.

4.2 Any service whether or not specifically mentioned in these Presents previously supplied may be permanently or temporarily withdrawn in whole or in part at the discretion of the Landlord if in the reasonable opinion of the Landlord such withdrawal is in the interests of good management or is due to any cause beyond the reasonable control of the Landlord.

5 **PERFORMANCE OF SERVICES**

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5.1 No costs or expenses shall be excluded from the Landlord's Expenses on the ground that the Landlord is obliged to carry out the relevant service to any third party and save as expressly provided in paragraph 3 of the Schedule 3 the Landlord shall not be obliged to perform all or any of the Services or to provide or install any system or service not in existence at the date hereof and the inclusion of heads of expenditure in Part 1 of Schedule 5 shall import no obligation on the part of the Landlord to incur any expenditure or perform any services within all or any of such heads of expenditure.

5.2 No objection shall be made to any cost incurred by the Landlord included in the calculation of the Landlord's Expenses upon any ground whatever save that the work or expense is not in respect of any of the Services or other expenditure within the definition of the Landlord's Expenses and in particular no objection shall be made by reason that the material work or service in question might have been provided or performed at a lower cost or to a lower quality standard or specification.

6 ALLOCATION OF PARTICULAR SERVICES

If by reason of any change in circumstances or otherwise in the opinion of the Landlord at its absolute discretion part of the Landlord's Expenses relate to services provided for the benefit of part only of the Landlord's Premises or for any particular occupiers or category of occupiers thereof or it is otherwise fair and reasonable to do so the Tenant's Proportion may be varied or such part of the Landlord's Expenses as shall so relate may be allocated in whole or in part to the persons (including the Tenant) so benefiting as may in the opinion of the Landlord be fair and reasonable.

7 RESERVE AND REPLACEMENT FUND ARRANGEMENTS

7.1 Any amounts collected under paragraph 23 of Part 1 of Schedule 5 (less any tax payable in respect thereof) may at the discretion of the Landlord and without any obligation or liability to the Tenant in respect thereof:

7.1.1 be paid over to a reputable insurance company which provides suitable facilities (whether or not the subject of a policy of indemnity insurance) for the accumulation of such payments towards future expenditure on plant replacement and other services expenditure; and/or

7.1.2 be held by the Landlord as a sinking or reserve fund towards such future expenditure upon the basis that such amounts as are not immediately expendable shall at the discretion of the Landlord be credited to an interest earning account opened with a branch of a London clearing bank chosen by the Landlord upon such terms as the Landlord shall consider appropriate and all interest earned thereon (less any tax payable in respect thereof and expenses relating to the operation of such account) shall also be credited to such account.

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7.2 The Landlord shall make available to the Tenant on request (but not more than once in each year) a statement of the total amount standing to the credit of such account at that time and the prospective items of expenditure to which the moneys in such account are allocated or the amount for which any such insurance policy is written as the case may be.

7.3 The Landlord shall be entitled at its discretion to expend moneys from such amounts collected in advance in respect of any items of expenditure charge or allowance for which the said sinking or reserve fund has been established on or towards the costs of such items incurred by the Landlord or in the discharge of any liability to tax in respect of the same.

7.4 The sinking or reserve fund so created and the interest earning account or insurance policy (as the case may be) shall be held by the Landlord in trust for all persons contributing towards the same and their successors in title for the purpose of defraying or providing a contribution towards the costs to be incurred by the Landlord in respect of which such fund shall have been set up but the Tenant and the said persons shall not without the concurrence of the Landlord be entitled to terminate such trust nor direct the Landlord to deal with such sinking or reserve fund or insurance policy (as the case may be) otherwise than in a, manner required or permitted by these Presents and the power of appointing a new or replacement trustee shall be vested in the Landlord.

7.5 Neither the Tenant nor any other person shall be entitled to the return of any part of any sinking or reserve fund or insurance policy so created or of any contributions towards the same and notwithstanding the termination of any interest save for any which remain unexpended at the Termination of the Term which the Landlord may reasonably require.

7.6 Upon a disposal by the Landlord of its reversionary interest in the Landlord's Premises the Landlord shall transfer such deposit account and the balance of the sinking or reserve fund standing to the credit thereof so far as the same relates to the Landlord's Premises at the time of such transfer or the benefit of any insurance policies (as the case may be) to its successor in title to such reversionary interest.

8 LANDLORD TO PAY SERVICE CHARGE FOR UNLET PARTS

8.1 In the case of unlet Lettable Space the Landlord shall bear the proportion of the Landlord's Expenses which would have been recoverable from the tenant thereof had the same been let on the terms of these Presents.

8.2 The Landlord's Expenses shall not include any costs or expenses relating to Lettable Space which are the direct responsibility of or are properly recoverable by the Landlord otherwise than by way of service charge from any tenant of the Lettable Space or in the case of unlet Lettable Space would have been so recoverable had the same been let on a lease on the terms of these Presents.

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SCHEDULE 6
REGULATIONS

1 All refuse and rubbish within the Demised Premises must be kept improper receptacles bins or bags in an orderly fashion and shall not be removed except at such times and according to such directions as are from time to time designated by the Landlord and then only placed in receptacles in the areas of the Landlord's Premises set aside as a refuse collection area.

2 No food or beverages shall be brought through the Landlord's Premises except by such means at such times and according to such route as have been authorised by the Landlord (acting reasonably).

3 No entrances lobbies lifts staircases passages and other access facilities of the Landlord's Premises shall be obstructed in any way.

4 No lifts shall be overloaded in any circumstances and no passenger lift is to be used for the conveyance of goods.

5 No trade deliveries shall be permitted through the main entrance hall to the Landlord's Premises and shall take place only via the loading bay and the goods lift and the passages leading between the same and from the goods lift to their destination.

6 No safes bulky or heavy articles furniture or building materials shall be brought into or taken out of the Landlord's Premises except by prior arrangement with the Landlord and strictly in accordance with all directions as to time (which may be outside Usual Business Hours) route manner and otherwise for the movement of such articles as shall be prescribed by the Landlord and the Tenant shall be fully responsible for and indemnify the Landlord against all injury to persons or damage to property caused by the movement or installation of the same.

7 No additional locks or other security devices shall be fitted to or upon any doors without the prior written consent of the Landlord and in compliance with any conditions imposed and directions given by the Landlord in respect thereof for maintenance and necessary access for security and other purposes.

8 All requirements of and directions issued by the Landlord for security purposes and to regulate control identify and keep registers and records of all persons entering and leaving the Building and other parts of the Landlord's Premises at any time outside Usual Business Hours shall be strictly complied with including ensuring that all persons employed by the Tenant or visiting the Demised Premises and entering and leaving the same outside Usual Business Hours register in books maintained by the Landlord for that purpose and accept any restriction by the Landlord which prevents any person from entering the Landlord's Premises or the Demised Premises without a key pass or other authorisation in a form satisfactory to the Landlord.

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9 All fire fighting equipment and appliances must be regularly serviced and maintained and readily accessible at all times for immediate use and all persons employed in and visitors to the Landlord's Premises must familiarise themselves with the procedure in case of fire or other emergency and the use of warning systems and fire appliances.

10 The Building shall only be referred to by the name from time to time designated by the Landlord and such name shall be used only as part of the business address of occupiers of the Landlord's Premises and not for any promotional or other purposes.

11 All interior drapes are to be installed and operated so as not to interfere with the external appearance of the Building.

12 All premises not in use and (except in case of emergency or repair maintenance or cleaning) all windows and doors in and to all premises must be kept closed and securely locked.

13 All electrical apparatus machinery (save that which is designed or required to operate continuously) and lights (other than those required for security purposes) must be switched off at all times when premises are unoccupied.

14 Only the toilet accommodation and facilities allocated from time to time for use with particular premises shall be used for those premises and their occupiers staff and visitors and no tea leaves or other things likely to cause an obstruction are to be placed or thrown in or down waste pipes lavatory basins water closets or urinals.

15 All necessary steps shall be taken to prevent the overflow or waste of hot or cold water.

16 All cleaning and maintenance work and all other work alterations repairs or decorations must be performed by contractors and workmen approved by the Landlord and advance written notice must be given to the Landlord of the extent of work entrusted to them and of the expected visits of such contractors and workmen (other than any which are engaged under regular cleaning or maintenance contracts approved in advance by the Landlord).

17 No discharged employee of the Landlord or the Landlord's Surveyor shall be knowingly engaged or taken into employment in or about the Landlord's Premises.

18 Vehicles must not be parked in any part of the Landlord's Premises except in allocated Car Spaces (except insofar as the Landlord may have given specific written authority to the contrary and then only in accordance with such authority and the conditions imposed in it) and use of the Car Spaces must be confined to the parking of private motor cars only and during Usual Business Hours (and other times approved by the Landlord in advance) only.

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EXECUTED as a **DEED** under the)
COMMON SEAL of the **BANK OF**)
ENGLAND in the presence of:)

The Common Seal of the Bank of England

Witness Signature:

Name:

Address:

Occupation:

Executed as a deed by)
ITF LICENSING (UK) LIMITED)
acting by: David Haggerty)
.....)
Dominic Anghileri)
)
and .....)
two directors / a director and its secretary)

DocuSigned by:
4B7008275B76454...
..... Director

Signed by:
Dominic Anghileri
F5EA6549D4F341D...
..... Director/Secretary